

PEOPLE ON WAR

Country report Cambodia

ICRC worldwide consultation on the rules of war

Report by Greenberg Research, Inc.

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INTERNATIONAL COMMITTEE OF THE RED CROSS

About the People on War project

To mark the 50th anniversary of the modern Geneva Conventions (on 12 August 1999), the ICRC launched its People on War project with the aim of building greater respect for fundamental humanitarian principles. At centre stage is a worldwide consultation giving the general public a chance to air their views on the many facets of war. The idea was that civilians and combatants alike would be able to share their experiences, express their opinions on what basic rules should apply in war, discuss why those rules sometimes break down and look at what the future holds.

With this in mind, the ICRC commissioned Greenberg Research, Inc. to design a research programme that would enable people to be heard in the most effective way possible. Under the guidance of Greenberg Research, ICRC staff and Red Cross and Red Crescent volunteers carried out this consultation in 12 countries (Afghanistan, Bosnia-Herzegovina, Cambodia, Colombia, El Salvador, Georgia/Abkhazia, Israel, the occupied territories and the autonomous territories, Lebanon, Nigeria, Philippines, Somalia and South Africa), conducting in-depth, face-to-face interviews, group discussions and national public opinion surveys. Surveys on the basis of a questionnaire only were conducted in a further five countries (France, Russian Federation, Switzerland, United Kingdom and United States) in order to reflect these people's perceptions of war.

Greenberg Research analysts then prepared a series of Country Reports on the basis of the findings. The reports open up this new, important discourse to a wider audience, while remaining conscious of the need to protect the safety of all those who participated.

By making this consultation public, the ICRC hopes to initiate a local and international debate on the humanitarian aspects of war – a debate that should be joined by the major political players, international and non-governmental organizations and aid specialists.

Greenberg Research, Inc.

Greenberg Research is an opinion research firm that has worked for over two decades to help organizations and leaders around the world advance their goals in the face of rapid change. It specializes in using advanced methods of opinion research – surveys, focus groups and in-depth interviews – to help form strategies for political parties, corporations and non-governmental organizations.

Greenberg Research has extensive experience in Europe and the United States, but also in the Middle East, Asia, southern Africa and Central and South America. It has conducted research in war-torn, politically complex and remote settings. In its work for corporations and non-governmental organizations, it has explored a broad range of global issues, including landmines, genetic engineering, climate change, race and gender relations, trade and information technologies.

The opinions expressed in this report are not those of the ICRC. The ICRC retained Greenberg Research, Inc. to design and oversee the People on War consultation. Greenberg Research compiled and analysed the results and is responsible for the content and interpretation.

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Country context

The Cambodian people have experienced war, conflict and deadly political clashes almost continuously for the past 30 years. These years can be roughly divided into five phases: a civil war from 1970–1975; the rule of the Khmer Rouge from 1975–1979; the Vietnamese invasion and occupation from 1979–1989; continuing but relatively light civil war from 1989–1993; and infighting among competing political factions from 1993 to 1998. Taken together, these wars, conflicts and political campaigns have claimed no fewer than 2.5 million lives and devastated the nation.¹

The first civil war erupted in 1970 after General Lon Nol seized power from Cambodia's long-ruling Prince Norodom Sihanouk. Sihanouk set up a government in exile in Beijing and made an alliance with the Khmer Rouge, an armed faction inspired by communist ideology that eventually formed an army of 50,000 soldiers. While the United States armed and supported Lon Nol's government, the North Vietnamese and the Chinese backed the Khmer Rouge. While Phnom Penh fought the increasingly strong Khmer Rouge, the United States — as part of its strategy in the Vietnam war — dropped more than 500,000 tons of bombs on Cambodia, destroying much of the country and driving half the population into the cities as displaced persons.

The Khmer Rouge assumed power in 1975, marking the start of the rule of Pol Pot and the darkest years of Cambodia's modern history. Soldiers immediately evacuated Phnom Penh and other cities, and sent the population into the countryside as the first step in its plan to establish a peasant, communist society free from Western influence. Over the next four years, it is estimated that more than 1 million people — and perhaps as many as 2 million — died in the “killing fields”. Thousands were tortured and executed, including many Khmer Rouge, and hundreds of thousands were starved or worked to death. Tens of thousands tried to flee across the border into Thailand — many dying along the way — and refugee camps became a permanent feature of the border.

On Cambodia's eastern border, Pol Pot's forces launched a series of incursions into Vietnam and broke off diplomatic relations with Hanoi. In late 1978, the Vietnamese army invaded Cambodia and made short shrift of the Khmer Rouge troops. Hanoi installed a new government in Phnom Penh but failed in its numerous attempts to destroy the guerrilla resistance. These groups — including the Khmer Rouge, a non-communist group and followers of Prince Sihanouk — formed an internationally recognized coalition government in 1982, with their forces based in camps along the Thai border. Seven more years of political infighting and military stalemate followed.

Under financial pressure and recognizing the failure of its occupation, Vietnam began to withdraw its 140,000 troops in May 1988. Hanoi's decision to pull out increased the diplomatic pressure to find a settlement, and in August 1989 — one month before the last Vietnamese troops left Cambodia — Hun Sen, Prime Minister of Cambodia at that time, and Prince Sihanouk met at a peace conference in Paris. The effort failed, but sparked attempts by members of the United Nations (UN) Security Council to draw up a plan for a cease-fire and coalition government.

These efforts eventually bore fruit in late 1991, and the leaders of a new coalition government, which included the Khmer Rouge, returned to Phnom Penh. The largest peacekeeping force in UN history was dispatched to Cambodia to carry out the terms of the cease-fire and supervise elections. The force — known as UNTAC (United Nations Transitional Authority in Cambodia) — failed to disarm the factions, but elections were held successfully in 1993, with Prince Sihanouk's FUNCINPEC party (United National Front for an Independent, Neutral, Peaceful and Cooperative Cambodia) won the election. Under pressure, Sihanouk agreed to form a coalition government jointly headed by his son, Prince Ranariddh, and Hun Sen. The power-sharing arrangement was shaky from the beginning.

¹ Brogan, P. *World Conflicts*, Lanham, Maryland: The Scarecrow Press Inc., 1998, p. 155.

The past six years in Cambodia have been marked by the breakdown of the coalition, occasional military battles and the emergence of Hun Sen as Cambodia's dominant leader. As Khmer Rouge officers and fighters began to surrender from 1996 onwards, Hun Sen and Prince Ranariddh competed for their support. This prompted a brief but fierce battle in July 1997 in Phnom Penh between forces loyal to the two factions, with Hun Sen emerging victorious.²

In 1997, Pol Pot emerged from years of hiding, proclaiming during a show trial staged by his former followers that "my conscience is clear". He died of what appeared to be natural causes in April 1998, leaving his countrymen to deal with the legacy of his brutal rule. In late 1998, a coalition government was formed between the predominant Cambodian People's Party (CPP) and FUNCINPEC. Membership of ASEAN and the dissolution of the Khmer Rouge and the imprisonment of its main leaders have created an increasing sense of stability in the country.

² Prince Ranariddh escaped, was tried for treason *in absentia*, was pardoned by his father and returned to Phnom Penh to make peace with Hun Sen.

Country methodology

The findings in this report are based on a consultation sponsored by the ICRC in Cambodia. The project was coordinated by Asian Strategies, a local research company based in Singapore and Sydney, through the ICRC delegation in Phnom Penh and with assistance from the ICRC's Cambodian staff. Greenberg Research, Inc. worked with Asian Strategies to develop the sample design and coordinated the collection and collation of the data so that it could be electronically processed.

The survey and interview guidelines were developed by Greenberg Research and the ICRC. Asian Strategies staff administered the survey questionnaire and conducted the focus groups and in-depth interviews, in accordance with procedures developed by Greenberg Research and Asian Strategies.

The three components of the research were as follows:

- Eight **focus group** (FG) discussions were held throughout Cambodia, between 6 and 10 September 1999. Focus group participants included: female urban youth, female market stall vendors and female single heads of household in Phnom Penh; male rural youth in Battambang; male peasants from Kompong Cham; former Khmer Rouge fighters and female returnees in Malai; and members of the Royal Cambodian Armed Forces (RCAF) in Kompong Som. Professional moderators employed by Asian Strategies moderated the groups. The discussion guidelines were developed by Greenberg Research and adjusted to context with the assistance of the ICRC delegation in Phnom Penh. Discussions were held in Khmer.
- Twenty **in-depth interviews** (IDI) conducted throughout Cambodia by staff from Asian Strategies using guidelines developed by Greenberg Research. Interviewees included landmine victims and former soldiers, professionals such as journalists, doctors and teachers, and a Buddhist monk. Each interview lasted approximately 45 minutes; all were completed during the month of September 1999. In-depth interviews were conducted in Khmer and English, recorded on audiotape and afterwards transcribed and translated into English (when necessary) by Asian Strategies.
- A **national quantitative survey** of the adult general population of Cambodia (18 years of age and older) using a stratified, multistage cluster sampling method. In total, 1,009 interviews were completed. The quantitative survey was conducted from 1 to 16 September 1999. The data were weighted by gender and education to ensure that they accurately reflected the population. Percentages reported here are subject to a sampling error of +/- 4.5 percentage points (at a 95 in 100 confidence level). Results in smaller segments, such as the 524 interviews conducted with respondents who had less than a primary education, are subject to an error of +/- 6.3 percentage points.³

³ These estimates are based on population values of 50 per cent. Obviously, many reported percentages are lower or higher than that; higher percentages would have a smaller sampling error. For example, a reported percentage of 90 per cent for the total population would have a sampling error of +/- 2.6 percentage points.

Executive summary

For almost 30 years, the people of Cambodia have been the victims of ceaseless conflicts and extraordinary violence. Death and devastation have been their constant companions. Civil wars, a foreign invasion, the slaughter of citizens by their own government and gun battles in the streets of the capital have together produced suffering on a scale matched by only a few nations in the 20th century. It is no exaggeration to say that, generations from now, Cambodians will still be paying the price for the terror that was visited on their great-grandparents.

Recent history — both in terms of people's memories and ongoing experiences — has strongly shaped Cambodian attitudes towards war. From 1975 to 1979, when the Khmer Rouge ruled in Phnom Penh, Cambodians learned in terrible ways that the enemy need not come from outside one's borders, that virtually no one could escape a regime bent on waging war against its own people. When the Vietnamese invaded in 1979 — and then occupied Cambodia for the better part of a decade — centuries-old fears were ratified and the idea that foreign invaders deserve worse treatment than one's countrymen took strong hold. More recently, as fighting among armed factions has threatened civilian lives and the country's stability, Cambodians have developed a deep distrust of their government, convinced as they are that political leaders are ready to set Khmer against Khmer in order to satisfy their own ambitions.

Scarred by this history and most especially by the lunacy of the Khmer Rouge, Cambodians strongly believe in protecting civilians from the ravages of war. The ICRC consultation reveals a society in which villagers, businessmen, students, government soldiers and armed fighters all set high standards for wartime behaviour. They condemn attacks that threaten civilian lives and property, are eager in most cases to protect enemy combatants and reject the notion that, as one former Khmer Rouge official put it, "*Tous les moyens sont bons dans la guerre.*" ("In war, anything goes.") (IDI, former Khmer Rouge official, Malai)

How then to account for the tremendous damage suffered by civilians during the past three decades? What caused the line meant to separate civilians from combatants to be swept away? Three features of the Cambodian conflict offer a good route to an explanation.

The first can be found in the years of Khmer Rouge rule, during which civilians were not collateral casualties of conflict but, rather, the express targets of a homicidal regime that buried its victims in the "killing fields". These deliberate attacks on civilians not only ripped apart millions of Cambodian families but created an atmosphere of "acceptance" for such actions.

The second element was chaos — a natural and often deadly aspect of all wars, but especially of the guerrilla wars that were fought in the villages and jungles of Cambodia. In such cases, distinguishing between combatants and civilians becomes nearly impossible. Casualties among innocent, unsuspecting civilians are seen as inevitable. "The bullets have no eyes," people explained as they bent over backwards to defend the combatants who had fired the shots. (FG, female returnees, Malai)

Lastly, the character and background of the combatants in Cambodia served to ensure that many civilians would find themselves caught in the crossfire. While war promises safety for no one — and even the most skilled and disciplined armies can lose control of a situation — the presence of young, untrained and impressionable combatants dramatically increased the potential for attacks on civilians. Torn from their villages and thrust into battle without training, these soldiers and fighters roamed the countryside armed and dangerous, ready to follow orders without question.

These elements combined to foster an era of conflict that has left the Cambodian people eager, indeed desperate, for stability. Today they are struggling with the legacy of those years — from destroying the millions of landmines that threaten their children playing in the fields to defusing the

vi extraordinarily divisive debate over punishment of the Khmer Rouge leaders who inflicted such harm on their people. Though some talk of peace, many more are darkly pessimistic. Exhausted by conflict, suspicious of their leaders and fearful of the future, Cambodians hope against hope that they have escaped the cycle of violence which has enveloped their nation for far too long.

These are the other major findings of the ICRC consultation:

The war's toll. Almost three decades of violence have had widespread effects on Cambodia's population.

- Cambodian society has been torn apart. Seventy-nine per cent of those surveyed say that fighting claimed the life of an immediate family member.
- The violence, especially torture, was widespread. Nearly two-thirds of those surveyed (64 per cent) say they lived in an area where fighting occurred — 44 per cent say they lived under enemy control. Almost one in five Cambodians (19 per cent) report having been tortured.
- Combatants bore the brunt of the violence and displacement. Of those claiming to have been combatants, 26 per cent report being tortured (as opposed to 17 per cent of non-combatants) and 84 per cent report having lost a family member in the fighting (compared with 78 per cent of non-combatants).
- When presented with a list of 12 negative consequences of war, such as imprisonment, rape or property damage, 62 per cent of those surveyed say they experienced four or more of them.
- Not surprisingly, Cambodians have a generally negative view of the conflict. About half of those surveyed (51 per cent) choose the word “horrible” to describe their experience during wartime, 42 per cent choose “hateful”, 40 per cent “confusing” and 30 per cent “powerless”. Oddly, 11 per cent of those surveyed took a more positive view, describing their experiences as “exciting”, “challenging” or “hopeful”.

Protection of civilians. The incredible suffering of the Cambodian people contrasts with their views on wartime behaviour.

- When given three choices of how fighters and soldiers should treat civilians, 88 per cent of those surveyed say that combatants should attack only enemy combatants and “leave civilians alone”. Only 10 per cent answer that combatants should “avoid civilians as much as possible”, and only 1 per cent say there should be no distinction between combatants and civilians.
 - An overwhelming majority, 85 per cent, name actions that should not be allowed during war. A majority of respondents, 58 per cent, emphasize the protection of civilians, singling out vulnerable groups such as women, children and the elderly.
 - Cambodians are strongly protective of civilians. Eighty-six per cent of those surveyed reject attacks on civilians who are providing the enemy with food and shelter or are helping transport ammunition.
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- More than eight in ten respondents (82 per cent) think depriving civilians of food, medicine or water in order to weaken the enemy is “wrong”, while 12 per cent see it simply as “part of war”.
- There is a stark difference between combatants and non-combatants. While only 9 per cent of non-combatants deem it acceptable to deprive civilians of food and water, almost three times as many combatants (26 per cent) agree.
- When asked about attacking populated villages or towns knowing civilian lives would be put at risk, only 10 per cent consider it as “part of war”, while 84 per cent think it is “wrong”.
- When asked why certain wartime actions are not permissible, the overwhelming majority of Cambodians choose a normative reason — “it’s wrong” — as opposed to a pragmatic one — “it just causes too many problems” (84 per cent and 15 per cent, respectively).
- Among those who choose the normative reason (“it’s wrong”), 56 per cent say such actions are “against the law”, while 21 per cent say they are violations of human rights. Further, 23 per cent say such actions are wrong because they clash with their religious beliefs or go against their own “personal code” (18 per cent).
- With Cambodian fields and jungles still sown with an estimated 6 million unexploded landmines, these devices feature prominently when respondents are asked what kinds of weapons should be prohibited in war. When asked to single out a specific weapon, nearly half of those surveyed (46 per cent) mention landmines, while 29 per cent cite nuclear weapons and 20 per cent specify chemical weapons.
- Cambodians are also protective of captured combatants. Ninety-three per cent of respondents say they do not approve of putting captured combatants to death, even if the other side were doing so. Similarly, 94 per cent of those surveyed do not think captured enemy combatants “deserve to die”.
- Eighty-five per cent of those surveyed say they would save a surrendering enemy combatant who had killed someone close to them, while 84 per cent say they would help a wounded enemy combatant who had killed a loved one.
- However, Cambodians have a surprisingly high acceptance of torture, considering the protection they afford civilians from being killed. More than one-third (36 per cent) of respondents sanction the use of torture to obtain important military information. Still, a strong majority (63 per cent) of those surveyed disagree. Combatants are more likely to find the use of torture acceptable — 42 per cent, compared with 35 per cent of non-combatants.

The breakdown of limits. The consultation reveals a Cambodia that is strongly protective of civilians and yearns for an end to violence and bloodshed. Yet Cambodians are all too familiar with bouts of sporadic violence that often defies their ability to reason why they and their country are caught up in such events.

- When asked why combatants attack civilians, 41 per cent say it is because they are “determined to win at any cost”, while an identical percentage think it’s because they “hate the other side so much”. A large number of those surveyed point to the weak character of combatants, 25 per cent think that combatants are “following orders”, 25 per cent that they “don’t know the laws”, 21 per cent that they are too young to employ good judgement, and

22 per cent that they have “lost all sense”, are under the influence of alcohol or drugs or are simply afraid.

- Cambodians generally frown upon the use of children in combat. Only 4 per cent of respondents think that children under the age of 18 are mature enough to bear arms. Seventy-seven per cent think that fighters and soldiers should be between the ages of 18 and 21, while 19 per cent think they should be over 21.

International law and institutions. The Geneva Conventions and the laws governing war are not especially well known in Cambodia.

- Twenty-three per cent of respondents say they have heard of the Geneva Conventions, while a little more than half (52 per cent) of that group could describe them accurately.
- When asked to describe the Geneva Conventions, 38 per cent of respondents say their purpose is to protect civilians and vulnerable groups during wartime; 16 per cent think it is to limit war or resolve conflicts, and 7 per cent to protect human rights.
- The study offers mixed evidence of the correlation between knowledge of the Geneva Conventions and attitudes towards wartime behaviour. Those who are aware of the Conventions are about half as likely to say they would *not* save or help a defenceless enemy combatant as those who are not aware of the Conventions (7 per cent versus 15 per cent). Similarly, those aware of the Conventions are less likely to approve of torturing prisoners (31 per cent versus 39 per cent) and significantly more likely to say that war criminals should be punished (81 per cent versus 51 per cent).
- After being read a description of the Geneva Conventions, Cambodians display a high level of confidence in their efficacy. Eighty-six per cent of respondents agree that “the existence of the Geneva Conventions prevents wars from getting worse”, while only 4 per cent say it “makes no difference”.
- Whatever their knowledge of the Geneva Conventions, Cambodians are highly knowledgeable about the existence of laws to protect civilians during wartime. Forty-five per cent of respondents say they know of laws that prohibit attacking populated villages knowing that many civilians would be killed, while 41 per cent say there are laws that prohibit soldiers and fighters from depriving civilians of food, medicine or water.
- Knowledge of specific laws to protect civilians appears to have little to do with people's attitudes towards attacking civilians. Combatants are much more likely than non-combatants to know of the existence of laws that prohibit attacks that could harm civilians (62 per cent versus 42 per cent) or deprive civilians of food and water (52 per cent versus 39 per cent). Yet, combatants are twice as likely as non-combatants to say attacking villages is “part of war” (18 per cent versus 8 per cent).
- A solid majority (57 per cent) of Cambodians surveyed say there are rules so important that, if broken during war, violators deserve to be punished. Only 8 per cent disagree.
- Of those who favour punishment of wartime abuses, 91 per cent say that wrongdoers should be put on trial. Only 7 per cent say that atrocities should be forgiven or forgotten or that law-breakers should be granted amnesty. Combatants are less likely than non-combatants to insist on a trial for wrongdoers (86 per cent and 93 per cent, respectively).

- Sixty-four per cent of the respondents who believe that war criminals should be punished say they should be prosecuted for violating international law, including human rights law, the Geneva Conventions and other rules governing wartime behaviour, while 35 per cent cite Cambodian law.
- Similarly, 54 per cent of those surveyed think an international court should be responsible for prosecuting those who break the laws; 44 per cent say they would prefer the Cambodian courts or government to take charge of the process.

The role of the ICRC/Red Cross. The ICRC/Red Cross is both well known and well respected in Cambodia. Furthermore, the organization's continuing role in helping families trace missing relatives has given it a special standing.

- Eighty-one per cent of Cambodians surveyed can properly identify the red cross emblem; 17 per cent say the emblem stands for medical personnel or facilities. Identification of the emblem is particularly strong in urban areas (91 per cent) as opposed to rural areas (79 per cent).
- Respondents see the red cross emblem as protecting vulnerable members of society. The emblem is seen as the protector of the poor and wretched (35 per cent), the wounded and sick (25 per cent), the hungry (23 per cent) and victims of disaster (10 per cent). Twelve per cent of respondents think that the emblem protects people in conflict, “unprotected” people and refugees or those displaced by war.
- The traditional role of the ICRC in visiting prisoners of war and monitoring their treatment is not specifically recognized by Cambodians. Asked who should be allowed to visit captives, six out of ten respondents (60 per cent) mention ICRC representatives. But 82 per cent choose representatives of human rights groups and 63 per cent identify UN personnel.
- Fifty-six per cent of respondents credit the UN with playing the biggest role in protecting civilians in wartime, while 52 per cent cite the ICRC/Red Cross. About four in ten respondents cite international humanitarian organizations and three in ten mention Cambodian government leaders as having played the biggest role during the conflict.
- Almost two-thirds of Cambodians surveyed (64 per cent) say they would seek help from the ICRC/Red Cross if they were attacked or deprived of basic necessities. While 19 per cent would turn to the Cambodian authorities and 11 per cent to humanitarian organizations in general, only 8 per cent would turn to the UN for such assistance.
- A remarkable 97 per cent of those surveyed would welcome more intervention from the international community to help protect civilians during wartime.

The United Nations (UN). There is perhaps no nation on earth where the UN is more respected than in Cambodia.

- An astounding 87 per cent of those surveyed say that the United Nations Transitional Authority in Cambodia (UNTAC) made the situation better.

Future prospects and fears. Cambodians are optimistic about the future, most likely because many believe that things cannot be any worse than they have been over the preceding three decades.

- Eighty-one per cent of those surveyed say they believe peace will last in Cambodia, as opposed to only 11 per cent who say they think there will be more war and conflict.

The context of war

Since the end of the 1975 civil war, Cambodian attitudes towards armed conflict and wartime behaviour have been heavily shaped by two critical elements. The first and most dominant was the brutal rule from 1975–1979 of Pol Pot and the Khmer Rouge, a watershed in modern Cambodian history and a benchmark against which all suffering is measured.

The second element is fear of foreign invasion — a fear validated by centuries of Khmer history and brought to life once again when the Vietnamese occupied Cambodia during the 1980s. Cambodians today set sharply different standards for “external” and “internal” wars, accepting or rejecting certain wartime behaviours based on whether they are dealing with a foreign invader or conflicts that pit their countrymen against one another.

More recently a third element — deep suspicions of the true objectives of war — has influenced Cambodians’ mindset with regard to civil wars. As political infighting among factions has continued since the elections in 1993, the Khmer people have come to see war as the direct result of a struggle for power and wealth among individuals. Burned by the Pol Pot years and angered by ongoing violence, Cambodians are swift to reject all those who promote conflict that serves personal, and not national, interests.

The legacy of Khmer Rouge rule

The years 1975 to 1979 have left an indelible mark on Cambodia and generations of its people. Seen as the darkest period in the nation’s modern history — and a benchmark for inhumanity in the 20th century — the “Pol Pot time” was not a war in any classic sense of the word. It was neither a civil war between two forces, nor a war waged across borders by one nation’s armies against another’s. It is perhaps best defined as a war waged by a brutal regime against its own people.

The direct impact of this era cannot be overestimated. Execution, torture, slaughter and starvation claimed more than 1 million lives.⁴ In “3 years, 8 months and 20 days” — shorthand routinely used to refer to the period — the world was turned upside down. The sick and the elderly were abandoned. Children were given guns and instructed to shoot their parents. Wearing eyeglasses was grounds for capital punishment. “Death. Death, death, death, death...” was the order of the day, as one government official put it. (IDI, government official, Phnom Penh) It was a time, as one woman recalled, when “I had no soul in my body.” (FG, female single heads of household, Phnom Penh) Today, people consider themselves fortunate to have lost “only” a husband or a father in the killing fields.⁵

It has been 20 years since Pol Pot was driven from power, but the memories of those times remain vivid — and the era’s impact was evident throughout the ICRC consultation. Taught by the Khmer Rouge that differing opinions — even simple talk — could lead to torture and death, many participants in focus groups and in-depth interviews refused to comment on a number of questions. This exchange between two women who sold goods in the markets of Phnom Penh was typical:

... why do soldiers or fighters still attack the civilians?
We cannot talk about this, I am afraid of [getting] involved in politics...
I am afraid of making mistakes. (FG, female market stall vendors, Phnom Penh)

The damage to the spirit and minds of Cambodians has been severe. Participants from all strata of society noted the effect of the Pol Pot era:

⁴ Brogan, P. *World Conflicts*, Lanham, Maryland: The Scarecrow Press Inc., 1998, p. 155.

⁵ “...luckily only my husband was killed,” one woman said. “It was fortunate enough that they killed only my father and left us,” another added. (FG, female single heads of household, Phnom Penh)

We can't see past the atrocities and the killing... The fighting has imposed an ideology of violence on everybody. They resort to using weapons to solve problems. (IDI, newspaper reporter, Phnom Penh)

Everybody has been damaged psychologically. You can ask: everyone at least lost one family member or relative. This affected the brains of the Cambodian people a lot. (IDI, deminer, Phnom Penh)

[The Cambodian people] lost all their spirit. They are traumatized, have no courage or confidence. (IDI, Buddhist monk, Phnom Penh)

About 30 to 50 per cent of [the] people are more cruel than before. They changed from gentle to vicious. (IDI, university professor, Phnom Penh)

... Khmer people are now more cruel. They just kill. They don't care about sin or merits. (FG, female market stall vendors, Phnom Penh)

Again and again, participants in focus groups and in-depth interviews said the physical and psychological damage wrought by the Khmer Rouge was greater than any civil war or foreign invasion that preceded or followed their reign. It is no exaggeration to say that the Pol Pot era brought new standards of brutality to Cambodia, indeed, to the world. In its wake it left a people exhausted by conflict and ready to reject those who preach or promote Khmer-on-Khmer violence.

Fear of foreign invasion

The second element critical to understanding the Cambodian mindset with regard to war is the sharp division between attitudes towards "external" wars to defend the nation and "internal" civil wars and conflicts that pit Khmer against Khmer. Simply put, Cambodian respondents prove open to almost any wartime tactic or treatment of the enemy if the nation has been invaded. If Cambodians are fighting one another, however, they express a strikingly more generous and tolerant stance towards the treatment of both civilians and combatants.

This divide is grounded in both ancient and recent history. For centuries, Thailand and Vietnam — Cambodia's western and eastern neighbours — have repeatedly invaded Khmer territory and claimed land and resources for their own.⁶ The Vietnamese occupation during the 1980s served only to ratify people's worst fears. Ten years have passed since the last Vietnamese soldier withdrew from Cambodia, but apprehensions about future invasion are as strong as if the occupation ended last month or last year.

Little wonder, then, that wars to drive out foreign invaders and defend "the motherland" are seen as "just", in sharp contrast to internal wars involving different factions of Cambodians.⁷

It is good if we make the war to protect our territory. We don't want to, but we have to. (FG, female urban youth, Phnom Penh)

Sometimes they [soldiers] fight with other race[s] in order to protect their territory, people and their property. It is right. (IDI, monk in training, Phnom Penh)

⁶ Thai rulers of the 19th century, for example, saw themselves as "destined to supervise the Khmer". Both Thai and Vietnamese rulers "were eager to extend their prestige along their frontiers and to amplify their self-images as universally accepted kings". Chandler, D. *A History of Cambodia*, Chiang Mai, Thailand: Silkwork Books, 1998, pp. 114-115.

⁷ Former Khmer Rouge soldiers and officers stressed that they were fighting "to free the country from the hand of [a] foreign country... to liberate the country from the foreign invasion." (FG, former Khmer Rouge fighters, Malai)

[Moderator: Suppose the government announces there will be war, will you voluntarily join the army?]

What sort of war will it be? Is it the foreign war or is it between Khmer? If it is between Khmer and Khmer we will not. We want [that] to stop. But if it is with foreigners who want to take our land, we will go [to fight]. (FG, male rural youth, Battambang)

This division was no less striking when attitudes on wartime behaviour towards civilians and combatants were probed. According to one former Khmer Rouge fighter, depriving civilians of food and water “was right during the period of foreign invasion, but it is wrong because no more foreign invaders are here now.” (FG, former Khmer Rouge fighters, Malai) A young woman in Phnom Penh offered a similar answer, saying that defeating a foreign country justified such actions but “I don’t think it is right to do that for the internal war.” (FG, female urban youth, Phnom Penh)

Questions as to whether an individual would help a wounded enemy combatant prompted these exchanges:

If they come to fight in order to take our territory, we will not help.
...But if [they are] Khmer, we [will] save them, because we are Khmer the same. If [they are from] Thailand and Vietnam we will not help. (FG, male rural youth, Battambang)

If they [were] Vietnamese, we captured, we killed [them] for sure, because they invaded Cambodia. Only Khmer we released. If Vietnamese, we killed. (FG, female returnees, Malai)

While this divergence in attitudes is no doubt present in many nations that have experienced both civil wars and foreign invasion, Cambodia presents a special case. Few countries match the extraordinary violence that Cambodians visited upon each other in the 1970s or the fresh memories of a decade-long occupation during the 1980s. The existence of two sets of standards for acceptable behaviour should therefore come as no surprise.⁸

Impact of power politics

Since 1970 Cambodians have lived in a poisonous political atmosphere and faced a bewildering array of factions and parties, each ready to use violence to seize the reins of power in Phnom Penh. They have been subject to the demands and whims of their would-be leaders and scarred by their ambitions. While the last confrontation between factions took place in July 1997, political infighting continues unabated. Exhausted and fearful of another war, Cambodians have grown ever more suspicious of the motivations of leaders they hold responsible for past wars and ongoing quarrels.

Throughout the consultation, any war pitting the Khmer people against each other was swiftly condemned and rejected as both morally and politically unjustifiable. While the enormous damage wrought by past civil wars and the Pol Pot era goes a long way towards explaining these sentiments, the vehemence of their reactions can be ascribed to the extraordinary cynicism that prevails among Cambodians. From generals to resettled refugees to village teenagers, participants in focus groups and in-depth interviews uniformly pointed to a lust for power and wealth as the driving factor behind the wars that have devastated their lives.

...you see war in Cambodia is not the war of patriotism... it was the war of grabbing power. (IDI, government official, Phnom Penh)

⁸ Quantitative data is not presented here because the survey did not directly test differences in attitudes towards wars to drive out foreign invaders and civil wars.

Fighting comes from the politicians. [They] fought for power and property. Politicians who become prime minister and ministers think not of the nation but first of their pockets. (IDI, RCAF general, Phnom Penh)

[They fought] for high ranking status.

They fought for power. It was 100 per cent they fought for their power since 1979 until the election [of 1993]. Even after the election they still struggle for power.

(FG, male rural youth, Battambang)

The leaders love power. They are power-greedy. They conscripted people's children to fight. (FG, female returnees, Malai)

[They] snatch for power. Kill people for their own power. For power and personal benefits. (FG, RCAF members, Kompong Som)

I think it was the war to seize power, for the benefit of each [political] party. It was not for the progress of the country, just for power... They waged war for power and ranks, for the benefits of their party. (IDI, Buddhist monk, Phnom Penh)

This kind of suspicion and alienation has deep implications for any current or future government attempts to mobilize the population in wartime or in peace. They lie at the heart of Cambodian fears for the future.

The war experience

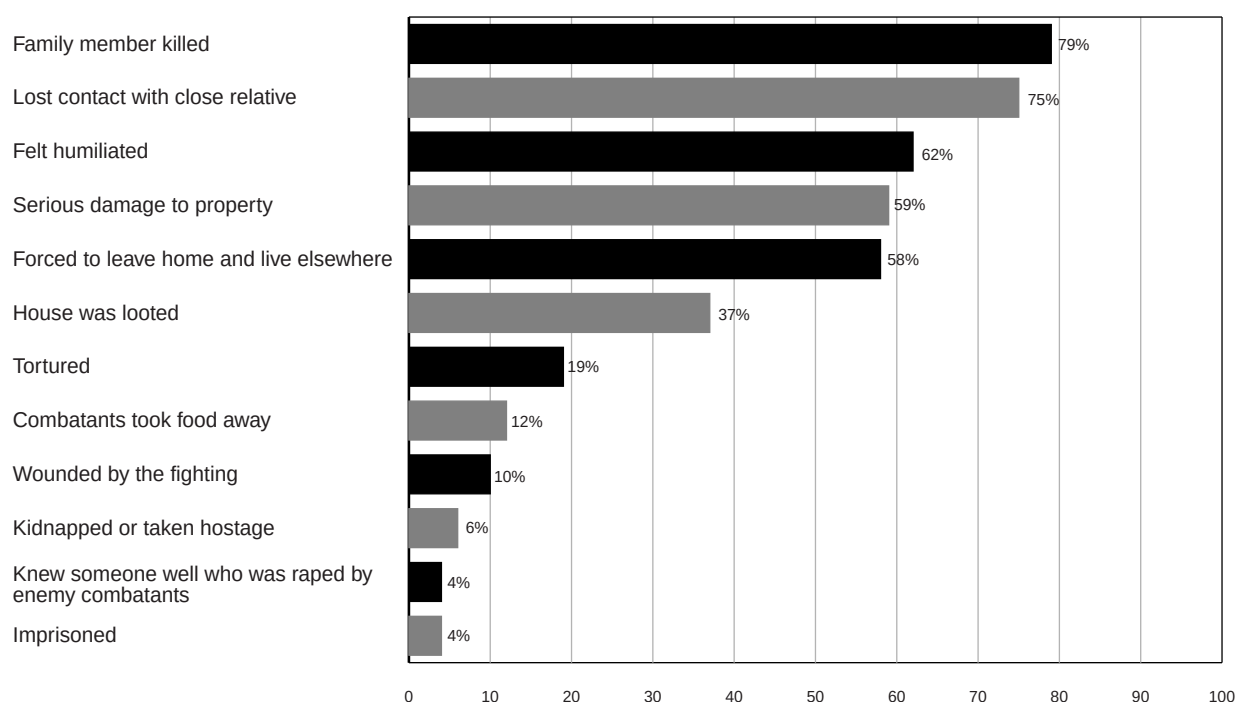
For almost 30 years, the Cambodian people were under constant assault. Civil wars, a foreign invasion, slaughter of citizens by their government, gun battles in the streets of the capital have combined to produce violence and suffering on a scale matched by only a handful of nations in the 20th century. Year after year of conflict — what one military expert calls “a way of life under the influence of a gun” — has physically decimated the nation and wreaked havoc on the national psyche. (IDI, foreign military expert, Phnom Penh)

The sheer breadth of the violence and suffering in Cambodia is hard to comprehend. An astonishing 79 per cent of those surveyed say that the conflicts claimed the life of a member of their immediate family. Almost one in five Cambodians (19 per cent) report being tortured. Presented with a list of 12 negative consequences of war — covering a range from imprisonment to property damage — 62 per cent of those surveyed say they experienced four or more. Nearly two-thirds (64 per cent) report that they lived in an area where fighting occurred, and 44 per cent say they came under enemy control.

FIGURE 1

The war experience

(per cent of total population responding)



To be sure, the fighting inflicted disproportionate pain and damage on certain groups. The 14 per cent of respondents who were combatants during the conflicts are more likely than non-combatants to have been wounded, tortured, imprisoned or to have lost a family member.⁹

Those who say they supported a side in the conflicts (21 per cent of respondents) are more likely than non-partisans to have had their property damaged, homes looted or to have been forced to leave their homes. Men and women, however, report similar wartime experiences. Men — who made up the vast majority of combatants — are more likely to have been wounded, tortured or imprisoned.¹⁰ But women were not immune to even the harshest consequences of war: 17 per cent of women report being

⁹ Twenty-six per cent of combatants report being tortured, for example, compared with 17 per cent of non-combatants. Eighty-four per cent say close family members were killed, compared with 78 per cent of non-combatants.

¹⁰ Twenty-eight per cent of men say they have been combatants, compared with only 3 per cent of women.

6 tortured, compared with 21 per cent of men. On other measures, including deaths in the family, property damage and displacement, they were equally victims.

In focus groups and in-depth interviews, participants drew a distinction between the experiences of men and women. While men faced greater physical danger on the battlefield, women lived under tremendous psychological pressure and were left to care single-handedly for their children. One woman who sold goods in a Phnom Penh market said women were more likely to avoid injury because staying at home made it easier for them “to find bunkers to hide and protect themselves from bullets or bombs”. (FG, female market stall vendors, Phnom Penh) A female student, on the other hand, gave the advantage in wartime to men, who “are stronger and can run faster”. (FG, female urban youth, Phnom Penh) An older resident of Phnom Penh summarized her view: “Men and women suffered the same. They are both suffering from the bullets.” (FG, female single heads of household, Phnom Penh)

On the whole, the survey reveals few differences in wartime experiences between different segments of Cambodian society. Fully six out of ten non-combatants — compared with seven out of ten combatants — suffered four or more negative consequences of war. Not taking sides in the conflicts by no means guaranteed safety. Those more highly educated were no more likely to escape death, injury or ruin. Where one lived provided no protection, as violence spread into every province at one time or another; even the smallest, most remote villages were not immune to marauding armed factions, American bombs, massacres at the hands of the Khmer Rouge or starvation. In Cambodia, no group had a monopoly on suffering.

Chaos, brutality and separation

Whether discussing street battles in 1997 or civil war in the provinces in the early 1970s, participants in focus groups and in-depth interviews described the events as times of chaos and constant disruption. Civilians were “nervous, shaking, and look[ing] for [a] place to hide.” (FG, female urban youth, Phnom Penh) Homes were ransacked, robbed or suddenly evacuated; people were forced to flee for their lives.

I was always on the run during the fighting... I don't know which side is good and which one is bad. I just kept running. (IDI, female mine victim, Battambang)

Some people have to pack and abandon their houses; along the roads and streets children are running; there are injured persons being carried; motorbikes and bicycles are rushing. The noise of bombing, shootings and explosions...
...People are mostly running around.
(FG, female urban youth, Phnom Penh)¹¹

I just ran and ran, and felt scared. (IDI, male mine victim, Battambang)

[We could only] escape and run by ourselves...
No one can be turned to [for help] as they are also running.
We just run following the orders.
(FG, female returnees, Malai)

Participants also spoke of the brutality of war and the scorched earth tactics of combatants on all sides. The words “destruction” and “devastation” were ceaselessly invoked. One former Khmer Rouge fighter said that “destroying all, burning into ash was the objective of fighting the enemy.” A government official remembered the 1970–1975 civil war as a time when he “saw many rockets... There was bombing near the schools... we cried and cried.” (IDI, government official, Phnom Penh) One man

¹¹ This description referred to the July 1997 fighting in Phnom Penh in which forces loyal to Hun Sen routed followers of Prince Ranariddh.

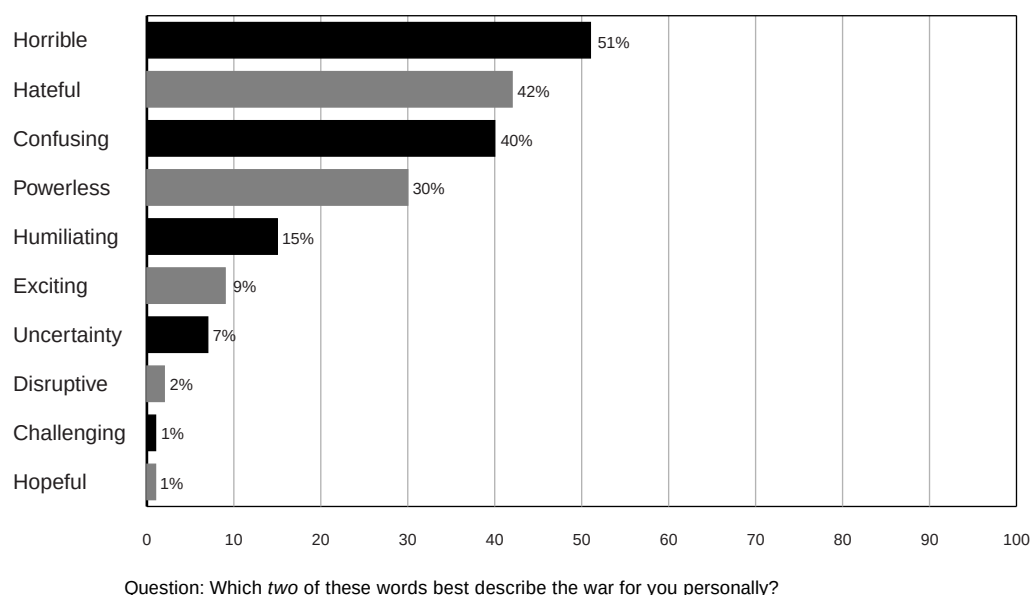
described war simply as “loss of arms, legs and life”, a reference to the thousands of victims of landmines who serve as a constant reminder of the past. (FG, male farmers/workers, Kompong Cham)

Asked to describe their experiences during wartime, about half of those surveyed (51 per cent) choose the word “horrible”, while 42 per cent use the term “hateful”. The chaos that has marked daily life in Cambodia is reflected in the four out of ten respondents who describe their experiences as “confusing”, and the three out of ten who say the conflicts left them feeling “powerless”. Oddly, 11 per cent of those surveyed take a more positive view, describing their experiences as “exciting”, “challenging” or “hopeful”.

FIGURE 2

Personal description of the war

(per cent of total population responding)



Families and youth

In the focus groups and in-depth interviews, participants repeatedly focused on what they called a particularly cruel effect of Cambodia's many conflicts: families forcibly separated for months or even years. Asked what they would tell other people about war, more people cite separation from relatives and friends than they do any other effect.¹² In Cambodia, this was not just an unfortunate by-product of war; during the rule of the Khmer Rouge, it was State policy. “Family members — father, mother, siblings, husband, wife, grandmother, grandfather — were separated from each other. There was no happy gathering. Every day there was suffering to individuals and families.” (IDI, Buddhist monk, Phnom Penh)

Long years of war severely stunted the intellectual and moral growth of several generations of Cambodian youth. While today's younger generation reports suffering fewer of the negative consequences of war, even their children's children will never fully escape the legacy of more than 20 years of conflict.¹³

For nearly three decades, tens of thousands of young men have been conscripted into armies and irregular forces. Some were seen as mere numbers, used by army officers to fill recruiting quotas that would bring them automatic promotion. (IDI, newspaper reporter, Phnom Penh; IDI, foreign military expert,

¹² In response to an open-ended question (What did you learn from the war that you think others should know?), 41 per cent of those surveyed say it “separates friends and relatives/destroys communities”. Thirty-nine per cent cite the pain, misery and destruction caused by war, while 34 per cent focus on economic want, unemployment and famine.

¹³ Respondents aged 18-29 are less likely to have lost a member of their family in war (66 per cent compared with an average of 87 per cent for those 30 or older); are half as likely to have been forced to leave their homes (36 per cent versus 72 per cent); and are far less likely to have been wounded or tortured.

8 Phnom Penh). Others were dragged away to support guerrilla forces pursuing causes they simply did not understand. (FG, female returnees, Malai) During the Pol Pot era, the Khmer Rouge consistently used young people, some so young that “the gun they carried touched the ground”, to intimidate families and carry out executions. (FG, RCAF members, Kompong Som)

For the children spared from carrying weapons, getting a good education has been virtually impossible. Twenty years after Pol Pot was removed from power, Cambodians are still suffering from the Khmer Rouge decision to shut down the entire national education system and send children into the fields to work alongside their parents. The school system is improving today — international aid is helping to build schools and train teachers — but it is still woefully inadequate.¹⁴

Asked in focus groups and in-depth interviews to suggest how best young people could be helped to get ahead, participants uniformly urged the government to expand educational opportunities. In a north-western village, one young man drew a simple connection between schooling and fighting: “When they are educated it is good. No war will happen in Cambodia. If there are more ignorant people, wars may take place because they [believe in] the law of the jungle.” (FG, male rural youth, Battambang)

Adults in Cambodia were quick to blame constant conflict for sending young people “on the wrong path of life”. (FG, female single heads of household, Phnom Penh) Older Cambodians also bemoan the religious and cultural ignorance of today’s youth, and what they see as indifference to morality.

Before the war, both young and old people had belief [in] respect, and loved each other very much.

The war philosophy made [youth] become violent and brutal... After the war, the young do not respect the old as before. They are rude. They take guns with them when [they] go to school.

(FG, male farmers/workers, Kompong Cham)

They don’t know about the Khmer culture. So they don’t respect old people...

But we didn’t change. We still pray for Buddha’s help.

So we still believe in karma. But Khmer people are now more cruel. They just kill.

They don’t care about sin or merits. There are many changes.

It is different from my generation. With the present children you can’t talk about Buddhist teaching. They wear jeans to the pagoda.

There are changes. And these changes happened since the Pol Pot time.

(FG, female market stall vendors, Phnom Penh)

Before they were more gentle. [They had] respect for the older people and Khmer tradition.

The young people now don’t think about sins and merits.

They don’t know what is law. They don’t respect law.

For religion, people still have faith but less than before...

They are not intelligent. They are traumatized.

(FG, RCAF members, Kompong Som)

[There is] no respect for each other. [People] don’t care about sins and merits.

[Religious] belief is lost... (FG, female single heads of household, Phnom Penh)

These sentiments were echoed by young people living both in small rural villages and in the capital city.

¹⁴ One man about 20 years old in a north-western village remarked, “It is my generation that had more education. Now there is not so much. Education [system] is poor. Only one student can pass the exams in one class.” (FG, male rural youth, Battambang)

[Moderator: Has the war made the young people change their religious beliefs?]

It depends. Some children still believe, but some do not. They do whatever they want.

They don't care about sin or merit now.

They don't believe much. The Khmer traditions [and] customs are transforming.

Most people now believe in science.

...only [a] few believe [in religion]. It is because of war and foreign culture coming in. (FG, male rural youth, Battambang)

I used to have belief in doing merits [doing good], but I have experienced misery in return; therefore [my] belief is going down. (FG, female urban youth, Phnom Penh)

In addition, young people — and especially those who are more educated — say that war has stopped Cambodian economic and political progress and has left them feeling embarrassed for their nation.

Nothing [in war] is good for Cambodia. It only makes the country go backwards. (IDI, female university student, Phnom Penh)

Nothing is progressing. The children were born into the war. They can't study. They have low education. They don't understand much. War caused everything [to move] backward. (IDI, monk in training, Phnom Penh)

...[the wars] make the neighbouring countries look down on us. I feel ashamed. (IDI, female high school student, Phnom Penh)

The country went down. There is no progress like [there is] in countries which have no war... We lost our dignity, our reputation. (IDI, male university student, Phnom Penh)

Protection of civilians

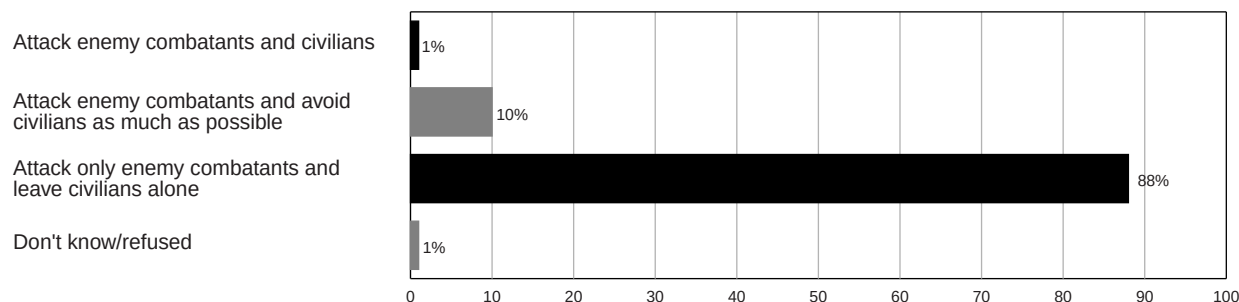
Limits on wartime behaviour

The terrible suffering that Cambodians have endured since the 1970s stands in stark contrast to its people's attitudes to wartime behaviour. Given three choices of how soldiers or fighters should treat civilians during battle, fully 88 per cent of those surveyed — among both combatants and non-combatants — say that they should attack only enemy forces and “leave civilians alone”. Only 10 per cent answer that combatants should “avoid civilians as much as possible”, while only 1 per cent take the hardest line, saying civilians and combatants are both fair targets.

FIGURE 3

Combatants and civilians

(per cent of total population responding)



Question: When combatants attack to weaken the enemy, should they...?

Eighty-five per cent of those surveyed volunteer actions that should be off-limits to combatants, while less than 1 per cent say that “everything is allowed in war”. A majority of respondents (58 per cent) focus on the killing of civilians, singling out vulnerable groups such as women, children and the elderly. Forty-five per cent focus on material possessions, noting that soldiers and fighters should refrain from robbing people or destroying civilian property. (See Figure 4.)

Combatants — both former Khmer Rouge troops and members of the RCAF — say they were specifically trained not to attack civilians. One-time Khmer Rouge fighters and officials spoke of a 12-precept code of conduct, based on Buddhist principles and Maoist doctrine, that was meant to guide their actions during wartime.¹⁵ The code included prohibitions on abuse of women, harming civilian property and stealing people’s food, among other things.¹⁶ (FG, former Khmer Rouge fighters, Malai) “Even picking one chilli from people’s gardens [they] need to ask permission or pay for the chilli,” one former Khmer Rouge official explained, adding that the code was “stricter than the monks’”. (IDI, former Khmer Rouge official, Malai)

Soldiers and officers in the RCAF reported more sophisticated training in the modern law of war. A general described a curriculum for officers that included a review of the Geneva Conventions and international human rights law. (IDI, RCAF general, Phnom Penh)¹⁷ Rank-and-file soldiers reported training that included lessons on human rights, psychology and “whom we should attack, whom we should not”. One soldier observed: “We need to get advice from our commander. If there are many civilians, including old people, children, pregnant women, we cannot attack so we withdraw.” (FG, RCAF members, Kompong

¹⁵ Mao believed that armies that did not treat the population well would undermine their own cause. “The people are like water and the army is like fish.” *Aspects of China’s Anti-Japanese Struggle* (1948) quoted in *Bartlett’s Familiar Quotations*, Boston, Massachusetts: Little, Brown and Company, 16th edition, 1992.

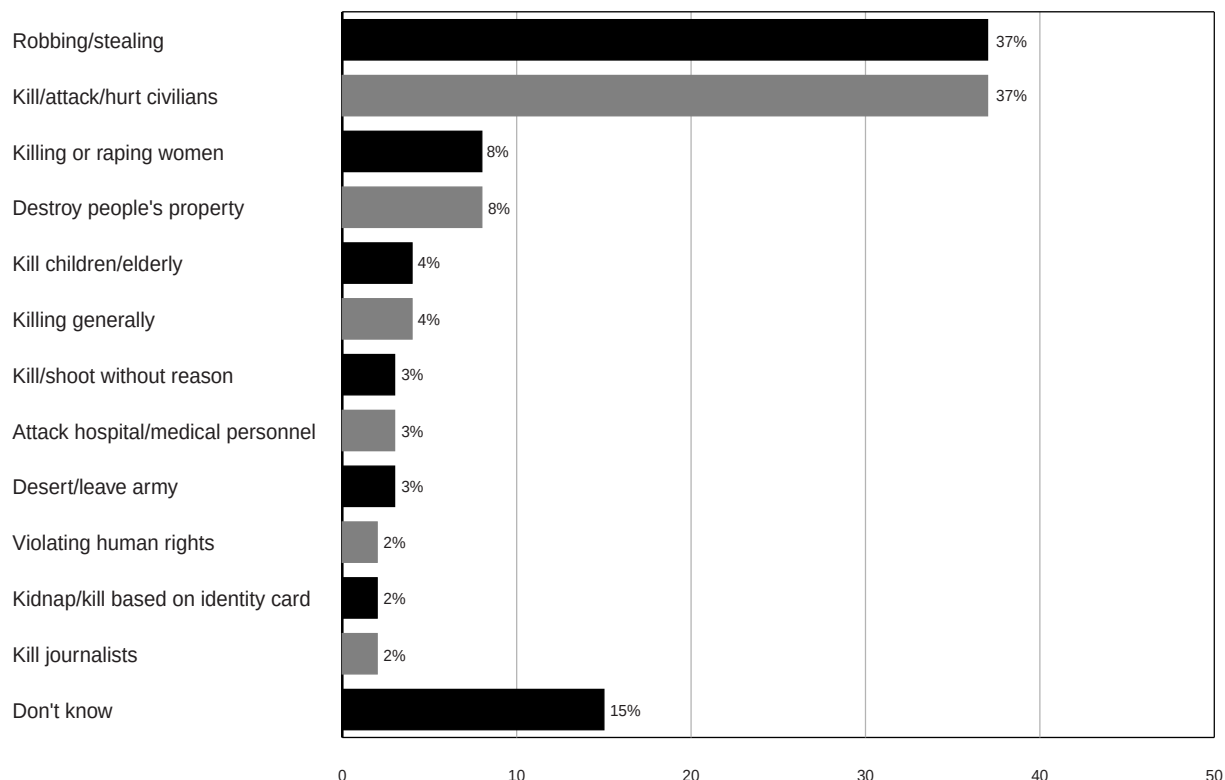
¹⁶ None of the fighters interviewed could identify all 12 articles in the code of conduct nor could they provide a written copy.

¹⁷ In the survey, combatants are more likely than non-combatants — by a margin of 63 per cent to 54 per cent — to cite the law when explaining why they oppose actions that threaten civilian lives and property.

FIGURE 4

What combatants should not do

(per cent of total population responding) (open-ended question)



Question: Is there anything that combatants should not be allowed to do in fighting the enemy?

Som) It should be noted, however, that training of this kind has only begun in recent years and remains uneven.

In focus groups and in-depth interviews, civilians — and women in particular — were clear about what combatants should not do.

The soldiers shouldn't be allowed to harm civilians, to rape women and to bombard people's homes.

Soldiers should not harm or torture the war victims...

Soldiers are not allowed to steal or rob people's property.

(FG, female urban youth, Phnom Penh)

If I were a soldier, I would defend Cambodian country, abstain from robbing other people's properties and [raping their] daughters, take religious belief and be honest with our people. (FG, female market stall vendors, Phnom Penh)

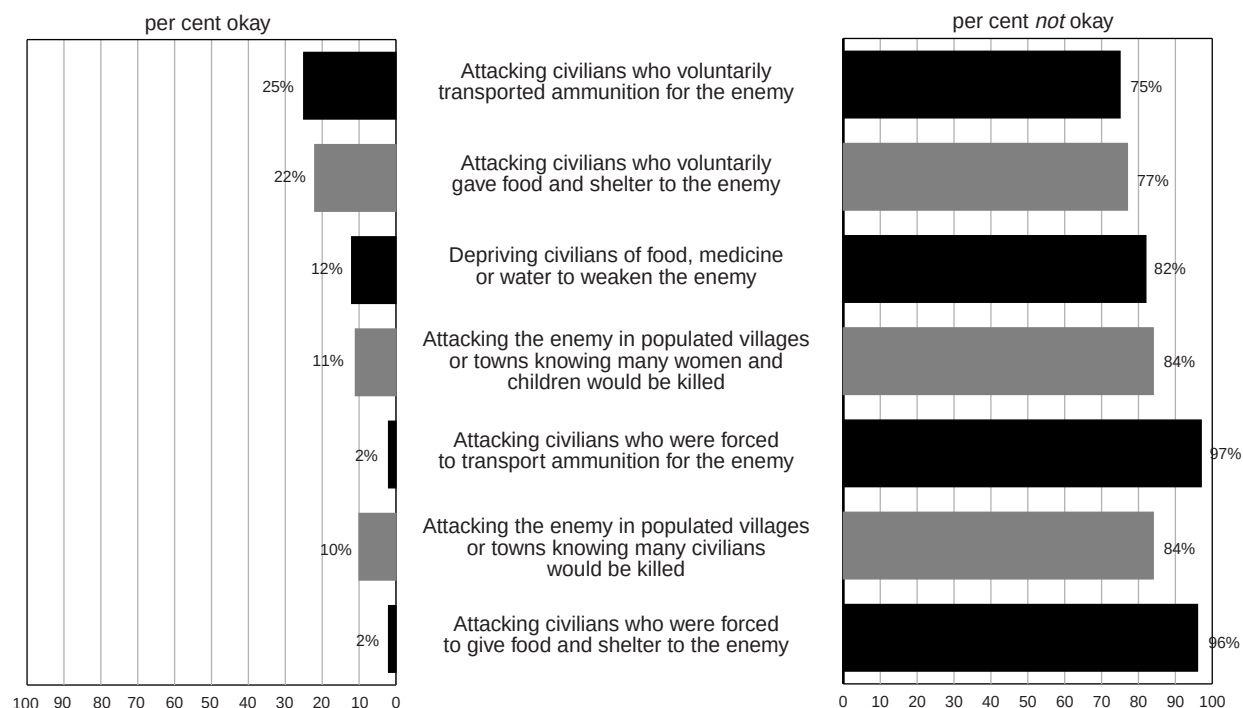
They should not do immoral things like raping women, robbing people's property, destroying houses, cutting [down] coconut trees. (FG, female single heads of household, Phnom Penh)

The real and the ideal

When respondents are asked to judge combatant behaviour in specific wartime situations, Cambodians prove themselves to be fiercely protective of civilians. An overwhelming 86 per cent of those

12 surveyed reject attacks on civilians who provide food and shelter to enemy forces or help combatants transport ammunition. More than eight in ten respondents (82 per cent) reject as “wrong” depriving civilians of food, medicine or water in order to weaken the enemy; only 12 per cent see such actions as “part of war”. A similar number (84 per cent) refuse to sanction attacks on enemy troops in populated villages or towns, where many civilian lives would be put at risk; only 10 per cent accept such attacks as “part of war”.

FIGURE 5
Acceptance of war practices
(per cent of total population responding)



Further analysis of the data and qualitative research reveals a more complex picture. Cambodians distinguish between those civilians who voluntarily support combatants and those who are pressed into service. For example, only 2 per cent of respondents sanction attacks on civilians who are forced to provide food and shelter to the enemy. But that number rises to 22 per cent when respondents are asked about civilians who volunteer such support. A similar divide appears when Cambodians are asked about civilians who transport ammunition for enemy combatants.¹⁸ Opinions vary according to the “internal” or “external” character of a war (see p. 3).

In focus groups and in-depth interviews, the reactions of combatants and civilians alike demonstrate the clash between ideal behaviour and the reality of wartime. A primary school teacher, asked whether combatants should attack populated villages or towns, framed the dilemma succinctly: “It is wrong, but it is also part of the war.” (IDI, primary school teacher, Phnom Penh) Another woman debated herself: “It is right [to attack] because in the war each side wants to win... In terms of humanity it is wrong, but if the civilians are siding with the other side, they [the opposing force] should attack. It is both right and wrong, because soldiers want to win.” (FG, female single heads of household, Phnom Penh)

In a group of farmers and workers, while one participant said depriving civilians of food and water was like “getting angry with the oxen, [and] hitting the ox cart”, another said flatly that civilians who

¹⁸ Two per cent sanction attacks on those who are forced to transport ammunition, compared with 25 per cent who approve of attacking civilians who volunteer to perform such duties.

get involved “are part of the fight”. (FG, male farmers/workers, Kompong Cham) This question prompted some of the most heated debates:

If they [deprive civilians of food and water] people will starve to death.
 If we don't do like that, the enemy will still be strong...
 The civilians live with them [the fighters]. How can they not get along with them?
 Wherever you stay you take that side. Where would we stay if we didn't provide them food supply?...
 We are afraid of death if we didn't share shelter with the armed soldiers, if we didn't share food with them. We had no choice.
 (FG, female market stall vendors, Phnom Penh)

It is wrong as long as [soldiers are] attacking the people. Not all the people in the whole village are providing food. Not everybody likes them [the soldiers].
 Ten people have ten minds.
 (FG, female returnees, Malai)

In the survey, combatants were more than twice as likely as non-combatants to sanction actions that pose a direct threat to civilians. Twenty-six per cent of combatants accept as “part of war” depriving civilians of food, medicine or water, compared with 9 per cent of non-combatants.¹⁹

In the focus groups, soldiers and fighters demonstrate no more acceptance than their civilian counterparts when it comes to depriving civilians of food, medicine or water in order to weaken the enemy.

It is right, because the people provided food to the enemy.
 It is right, because we have to destroy their economy...
 It is wrong, but we had to attack them in order to protect ourselves.
 It is right: attack first and solve problems later.
 It is right, they [civilians] were gathered and mobilized as [enemy] spies.
 It is wrong, the civilians are under the leadership of others.
 It is wrong according to my personal opinion, but it is right according to the order to attack civilians who are transporting food supply for the enemy.
 (FG, former Khmer Rouge fighters, Malai)

It is wrong, because [cutting off the supply will not] only deprive the soldiers of food but also the civilians.
 But if the civilians have food the soldiers will also have food so they still can fight against us. So soldiers need to deprive [civilians] of food. It is both right and wrong.
 It is wrong. It [is] inhuman to civilians.
 (FG, RCAF members, Kompong Som)

Law, religion and justice

The power of moral principles in today's Cambodia comes into clear view when respondents are asked why combatants should not take actions that threaten civilian lives and property. Among people who have endured nearly three decades of death, disruption and destruction, one might expect hard-nosed attitudes. The opposite is true. Eighty-four per cent of those surveyed characterize certain actions as “wrong”, while only 15 per cent choose the more pragmatic response that they just “cause too many problems”.

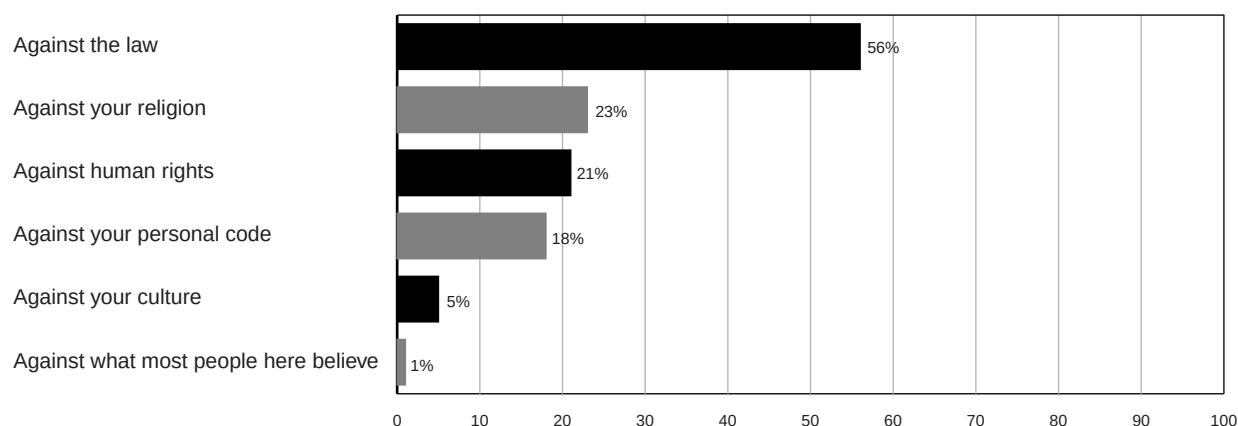
¹⁹ In a similar vein, 18 per cent of combatants sanction attacks on populated villages or towns knowing that many civilians would be killed, compared with only 8 per cent of non-combatants.

Those who consider attacks on civilians as “wrong” ground their beliefs in the law, human rights and religious faith. The yearning of the Cambodian people for a more just, rational society — and the influence of international norms — is reflected in the 56 per cent of these respondents who cite laws as the basis for the norm, and the 21 per cent who point to human rights. Religious beliefs are cited by 23 per cent of those surveyed and 18 per cent say their opposition to attacks on civilians is grounded in a “personal code”. Younger and more educated people are more likely to cite the law as the foundation for their beliefs.²⁰

FIGURE 6

Basis for the norm

(per cent of population responding “it’s wrong”)



Question: When you say, “it’s wrong”, is it primarily wrong because it is...?

Participants in the focus groups and in-depth interviews are much clearer on the religious principles that underlie their beliefs and behaviour than they are on the law. A general in the RCAF said that he first used specific Buddhist precepts to convince his soldiers to treat civilians well, and then introduced more pragmatic reasons. “If you kill people, if you take property, if you make the brutality, then you will [have sinned]... violence is sin. Second, if we make brutality, people will not stay with us.” (IDI, RCAF general, Phnom Penh) Some current and former combatants cited Buddhist practices and cultural superstitions in explaining their behaviour during combat.²¹

A Buddhist monk outlined the shared teachings of his religion and what he called “the law of nature”.

This is the code of conduct of [a] soldier as well as the code of conduct for mankind... Something that is not given should not be taken without prior consent, like people’s property, people’s wife or daughter. This is also law related to Buddhism... [which] says people should not behave inhumanely. It is like the Buddhist five precepts: not killing animals, not taking other’s property, not taking other’s wife, not telling a lie, and not confusing one’s sense and other’s [sense]. (IDI, Buddhist monk, Phnom Penh)²²

²⁰ For example, 57 per cent of respondents under the age of 50 mention the law, compared with 49 per cent of those older than 50. The figures for religion are 29 per cent and 23 per cent, respectively. Forty-eight per cent of respondents with no formal education cite the law, compared with 62 per cent of those with a primary education or more.

²¹ “The soldiers normally have their amulets. And once they have this amulet they are not allowed to rob, to rape. Because there is a belief that if they don’t follow that [teaching] they would face danger.” (IDI, deminer, Phnom Penh) “We believe in Bun and Bab [blessings and sins]. Before we went to fight, we lit incense and prayed for help from God and [our] parents.” (FG, former Khmer Rouge fighters, Malai)

²² The monk appears to be referring to the rules that govern a Buddhist monastic *sangha* (order). Under these rules, monks are judged in accordance with a set of precepts drawn from the *vinaya* texts (“that which leads”). The four gravest sins are sexual intercourse, theft, murder and exaggeration of one’s miraculous powers. The other rules deal with lesser transgressions, including lying and drinking alcohol. See “Buddhism”, *Encyclopaedia Britannica* at www.britannica.com.

Cambodians are equally vehement about their belief in laws that are meant to prevent abuse of civilians. From returnees to army soldiers to teenagers in an isolated village, participants in focus groups and in-depth interviews repeatedly cited international law and human rights law. (FG, female returnees, Malai; FG, RCAF members, Kompong Som; FG, male rural youth, Battambang)

The Cambodian people's essential sense of justice shone through the thicket of laws they cite but can not describe in detail. Almost three decades of conflict have reduced the Cambodian concept of human rights to its core: a belief that people should be left alone to pursue their lives as they choose. At the core of the Cambodian refusal to accept attacks on civilians is a story of right and wrong, of people caught up in conflicts they neither wanted to be drawn into nor understood.

...people are innocent...[they] don't want to have war.
The people know nothing. It is not right [to attack civilians] and [there is] no justice.
(FG, female returnees, Malai)

[It is] not right to open fire at a place where many people live... they are civilians, they don't have any weapons in their hands, they don't know anything. (FG, former Khmer Rouge fighters, Malai)

People don't know anything. They don't have weapons. They just want to live.
(IDI, Buddhist monk, Phnom Penh)

We should not attack the civilians.
[Moderator: Why do you say that?]
Because the people know nothing... (IDI, female university student, Phnom Penh)

Because people have no weapons, and they do not know about the quarrel [war].
(IDI, male mine victim, Battambang)

These comments are best seen not as a sign of political ignorance but as a revealing explanation of the anger and frustration that dominate Cambodians' feelings about their nation's political parties and leaders.

The weapons of war

As strongly as Cambodians reject attacks on civilians during wartime, they condemn the weapons — both simple and state-of-the-art — that have been used to kill and maim so many of their countrymen. And they have an extreme reaction to weapons that indiscriminately target civilians, particularly the estimated 6 million landmines that continuously put their countrymen one step away from a lifetime of disability.²³

When asked to name weapons that should not be used in war, respondents, combatants and non-combatants alike, focus on landmines; nearly half (46 per cent) single them out. Twenty-nine per cent of those surveyed would ban nuclear weapons, while 20 per cent mention chemical weapons.²⁴ In focus groups and in-depth interviews, participants listed a host of weapons that they believe should not be used, including the artillery pieces and rocket launchers that have wreaked such havoc in their lives. (FG, female urban youth, Phnom Penh; IDI, male mine victim, Battambang)

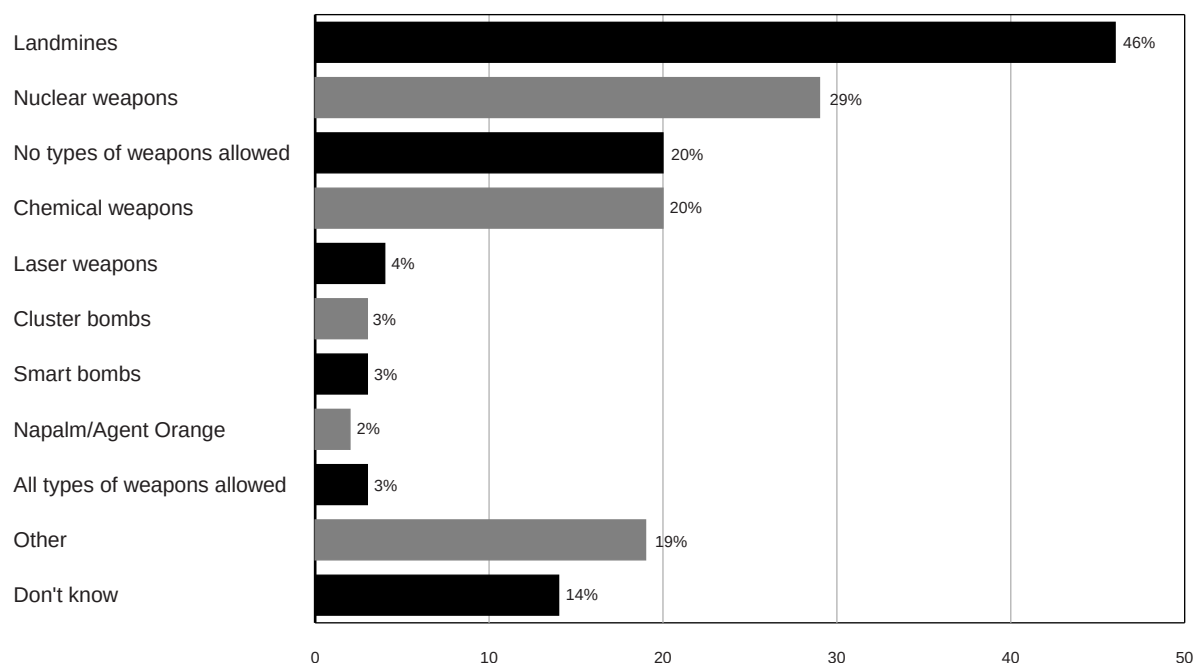
²³ More than one million mines have been cleared to date, according to the Cambodian Mines Action Centre. The ICRC has estimated that, at the present rate, it will take more than 300 years to clear Cambodia of all existing landmines. It is estimated that one in every 243 Cambodians has been maimed by a landmine. The vast majority have no money to pay for the prosthetic devices that could make their lives easier and more productive. Kamm, H. *Cambodia: Report from a Stricken Land*, New York: Arcade Publishing, 1998, p. 15.

²⁴ Combatants are more likely than non-combatants to mention weapons of mass destruction. Thirty-seven per cent of combatants mention nuclear weapons, compared with 28 per cent of non-combatants. The figures for chemical weapons are 32 per cent and 17 per cent, respectively.

FIGURE 7

Weapons of war

(per cent of total population responding) (open-ended question)



Question: Are there types of weapons that should just never be used during the war?
(IF YES) What types of weapons would you think of?

One-fifth (20 per cent) of respondents redirected the question, volunteering that *no* weapons ought to be allowed, while only 3 per cent of respondents say all types of arms are acceptable. “[We] don’t want to have weapons... They should solve things by peaceful means,” two women agreed. (FG, female single heads of household, Phnom Penh) A returnee said: “All weapons should not be used, in order to build and make the country progress...” (FG, female returnees, Malai) Both combatants and civilians reject the use of any weapon that “poisons the people who are not engaged in war”. (IDI Buddhist monk, Phnom Penh; IDI, deminer, Phnom Penh)²⁵ A number of participants echo the words of a Battambang man who lost the use of his leg because of a landmine: “It would be better if there is no use [of any weapons]... but if it cannot be avoided, use only small guns.” (IDI, male mine victim, Battambang)

Cambodians’ rejection of weapons that indiscriminately kill civilians comes out most strongly in attitudes towards landmines. Eight out of ten respondents say flatly that landmines should never be used (even to protect “the safety and security of your person and property”), while 18 per cent say they would approve of deploying them “in times of war”.²⁶ As might be expected, combatants are more likely to approve of using mines in wartime (26 per cent, compared with 17 per cent of non-combatants). Those with a primary education or higher are also more likely to approve of using landmines.

In focus groups and in-depth interviews, participants’ views on landmines changed according to the nature of the war (“internal” versus “external”). Mines were accepted “to protect our boundary from invasion” or to protect soldiers’ barracks, but rejected when used to protect houses or fight other Khmer forces. (FG, female market stall vendors, Phnom Penh; FG, female single heads of household, Phnom Penh; IDI, male high school student, Phnom Penh) “We [did] not talk about the future, only... self-defence,” a one-time Khmer Rouge official said in justifying his government-in-hiding’s decision to plant mines during

²⁵ Chemical weapons are singled out for criticism in several focus groups and interviews. Some of this disapproval no doubt stems from memories — and human reminders — of napalm and Agent Orange attacks on sites in western Vietnam and eastern Cambodia.

²⁶ Eighty-seven per cent of respondents reject the use of landmines “to stop the movement of enemy soldiers or fighters”. Several soldiers, fighters and civilians volunteer that landmines ought to be banned worldwide, with the more educated making reference to the 1997 Ottawa Treaty.

the Vietnamese invasion. (IDI, former Khmer Rouge official, Malai) He went on to describe mines as relatively humane weapons, at least in comparison with the poisonous *punji* sticks that guaranteed death.

Perhaps most interesting are the views of a trained physician (now a high-ranking government official) and a former soldier who now works full time defusing and destroying landmines. Both are realistic about the deployment of landmines in certain situations but also display a certain naivety.

During wartime [using landmines] is permitted. They [combatants] should know where they planted [them] and if nothing happens during the next two days, they need to take them back. (IDI, government official, Phnom Penh)

... [soldiers] need to find something to protect themselves. The planting of landmines in war is to protect themselves... But most important is the removal [of landmines] after planting. So after there is no more fighting the person who planted the landmines ought to take them out... The mined area should be clearly mapped... (IDI, deminer, Phnom Penh)

Captured combatants at risk

Cambodian attitudes to the treatment of captured combatants reflect the clash of real wartime experience and a fundamental optimism about human nature. Basing their beliefs on cultural, religious and military norms — bolstered by decades of close encounters with death — the vast majority of those surveyed insist that captured combatants should be protected. They believe that harming or killing captured combatants will only perpetuate violence and remain optimistic about the prospects of educating their captives. Yet a significant minority of Cambodians sanction mistreatment of captured combatants, especially torture. Decades of cruel behaviour among Khmers, combined with “emotions of the moment”, can overwhelm the best of intentions and create a permissive environment for abuse.

Treatment of captives

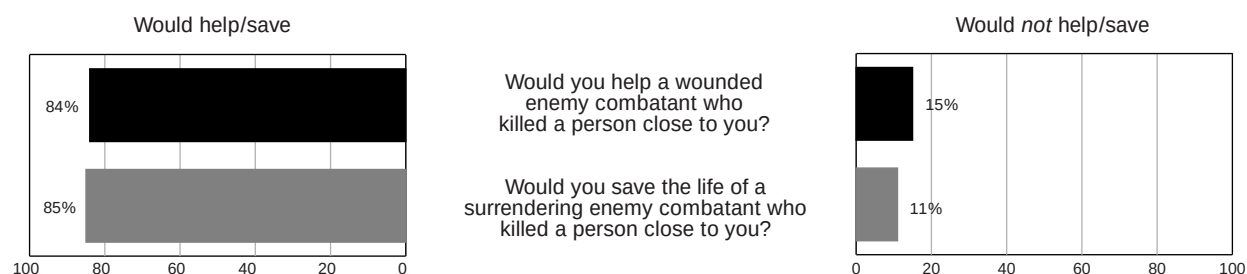
More than nine out of ten Cambodians reject the concept of killing captured combatants. Ninety-three per cent of respondents say they do not approve of putting captured combatants to death — even if the enemy were doing so. Ninety-four per cent of those surveyed disagree with the proposition that captured enemy soldiers or fighters “deserve to die”.

When Cambodians are faced with situations that involve personal decisions and life-or-death scenarios, an astonishingly large “humanity gap” separates them from their counterparts in other war zones. Eighty-five per cent of Khmer respondents say they would save the life of a surrendering enemy combatant or help a wounded enemy combatant — even if that person had killed a person close to them. Yet the survey reveals mixed evidence as to whether the experience of combat makes one more or less merciful. In this case, only 12 per cent of combatants say they would *not* help a defenceless enemy, compared with 16 per cent of non-combatants.

FIGURE 8

Wounded or surrendering combatants

(per cent of total population responding)



This somewhat startling statistic can be attributed to a wide range of factors that, while not unique to Cambodia, have gained particular strength through the years. These include a desperate collective wish to stop the cycle of killing; a Buddhist-inspired belief in the potential good within every human being; a pragmatic view of wartime situations (for example, a person might have been killed unintentionally); and an almost palpable desire among Cambodians to disassociate themselves from the vicious attacks launched by the Khmer Rouge and others against their nation's most vulnerable people.

On the more mundane matter of the treatment of captured combatants — such as allowing them the right to contact relatives and be visited by representatives of independent organizations like the ICRC — Cambodian respondents prove again to be better informed and more generous than others surveyed around the world. Ninety-four per cent of Cambodians say, for example, that captured combatants have the right to be visited by representatives of an independent organization. This is partially due, no doubt, to the influence of the UN forces that came to Cambodia from late 1991 to help keep the

peace and supervise elections. However, only 3 per cent of those who were imprisoned or lived under enemy control say they were given the chance to be visited by such people.

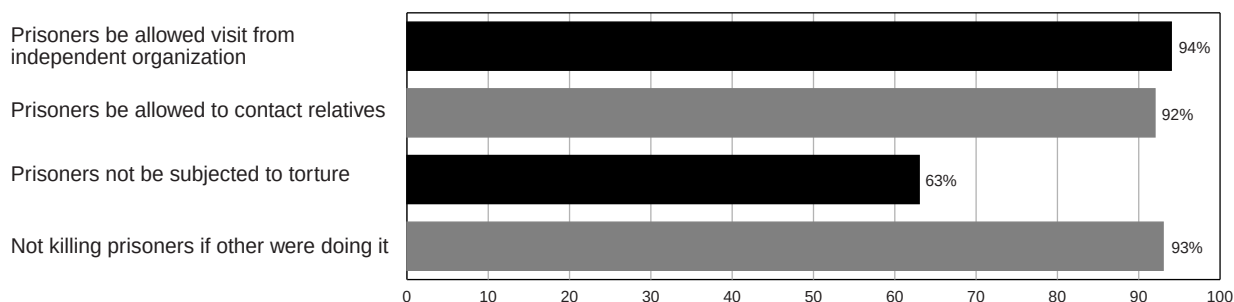
The anomaly of torture

Cambodians veer sharply off the charitable path when it comes to the question of torture. More than one-third of respondents (36 per cent) sanction the use of torture in order to obtain important military information, while 63 per cent say that prisoners should not be subjected to torture.

FIGURE 9

Captured enemy combatants

(per cent of total population responding)



Question: Now let me ask you how captured enemy combatants should be treated.

This view cuts across all segments of society. While 41 per cent of men approve of torture, so do 33 per cent of women. Cambodians with a primary education or higher are as likely as those with no formal education to sanction physical abuse of captured combatants. Forty-two per cent of combatants say torture is acceptable, as do 35 per cent of non-combatants. There is virtually no difference in attitudes between those respondents who were imprisoned or lived under enemy control and those who suffered neither fate. The exception to this rule are the Khmer with the longest memories of the damage done to their society: 27 per cent of those aged 50 or more sanction torture, compared with 39 per cent of those between the ages of 18 and 49.²⁷

Explaining this anomaly is not easy, but history, the survey and the in-depth research offer a few clues.

First, the impact of the Pol Pot era should not be underestimated. The Khmer Rouge routinely subjected tens of thousands of ordinary Khmers to unspeakable physical cruelty from 1975 to 1979. Torture became an experience shared across a broad swathe of society; in the years since, many Cambodians seem to have been “conditioned” to accept it as a part of war. Of the respondents who say they have been held against their will by the enemy or lived under enemy control, 59 per cent report being mistreated and 13 per cent say they were physically injured, while only 22 per cent say they were treated correctly. (See Figure 10.)

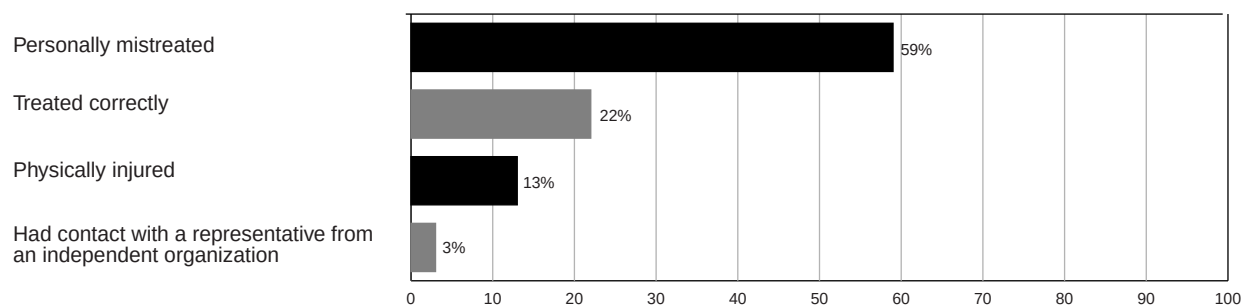
Second, Cambodians seem to draw a fundamental distinction between torture (a cruel but not final act) and killing (from which there is no return). This distinction is particularly apparent when one examines the differences between Cambodians who, both intentionally and unintentionally, participated closely in conflict. For example, combatants are four times more likely than non-combatants to approve of killing captured combatants (17 per cent versus 4 per cent). Yet the difference between these groups disappears when it comes to the use of torture: 42 per cent of combatants and 35 per cent of non-

²⁷ This attitude can be partially explained by the fact that 22 per cent of people 50 or older report having been tortured, compared with 16 per cent of those under 50. Seventy per cent of people 50 or older report that they were mistreated while living under enemy control, compared with 55 per cent of those under 50.

FIGURE 10

While under enemy control

(per cent imprisoned or under enemy control)



Question: Please tell me whether any of the following happened while you were under enemy control.

combatants sanction it. In the same vein, those Cambodians who were imprisoned or lived under enemy control are three times more likely than those who suffered neither fate to approve of killing captured combatants (9 per cent versus 3 per cent). But there is virtually no difference between these two groups on the question of torture (36 per cent and 37 per cent approve of it, respectively).

Third, torture is viewed by civilians and soldiers alike as a necessary, almost inevitable (though certainly not desirable) tactic. “If there was no beating you can’t get the answer,” one young man explained. (FG, male rural youth, Battambang) “They must be tortured,” a woman in Phnom Penh explained. “When fighting we don’t know who is good and who is bad, we don’t know.” (FG, female market stall vendors, Phnom Penh) A former Khmer Rouge fighter said flatly that soldiers torture captives “because they want certain information, and the captured combatant of war doesn’t want to give the answer.” (FG, former Khmer Rouge fighters, Malai)

The logic and hope of mercy

In focus groups and in-depth interviews, Cambodians explain their generosity towards captured combatants as a matter of logic and hope. Leaving aside the treatment of foreign invaders — for whom Cambodians express little or no mercy — even those who take a harsh stand towards captives do so hesitantly, justifying their beliefs and actions as a “necessary” response to enemy actions.²⁸

Across all segments of society, occupations and ages, Cambodian attitudes to the treatment of captured combatants carry with them a simple message: “We want no more war”. Killing, harming, even *not helping* captured combatants are seen as guaranteed methods of prolonging conflict.

... if we kill them, it will create revenge and it will cause more people [to die].

The killing will continue without end...

If we kill that prisoner, it doesn’t mean the war will stop.

(FG, male rural youth, Battambang)

If we kill, it will create more hatred and revenge. (IDI, deminer, Phnom Penh)

It is wrong [to kill prisoners]. If they are killing our prisoners, we need to find ways to solve that. [We] should not kill, because the result is death again and again.

(FG, RCAF members, Kompong Som)

²⁸ See the section, The fear of foreign invasion, p. 2.

We should uphold humanity and justice above all else. If we kill [prisoners] back and forth the war will never end. Personal hatred and revenge will exist so we should leave [punishment] to the law, to the judges. (IDI, newspaper reporter, Phnom Penh)

.... [we should] leave it up to the law for solving and trial.

[We] shouldn't keep in mind and [seek] revenge, otherwise Khmer will be fighting against each other...

If we killed them for doing wrong, we were also wrong.

If killing back and forth, there will be a war.

(FG, male farmers/workers, Kompong Cham)

More educated participants appealed to the simple humanity and self-respect that seemed to have been erased through so many years of conflict. A university professor remarked: "... if they kill [prisoners] it means they are like animals, they are inhumane. So we should not follow them. One saying goes like this: 'If the dog bites us and we bite the dog back it means we are also a dog.'" (IDI, university professor, Phnom Penh) "You need to have [a] humane heart," a newspaper reporter said. "We should save and educate them, because sometimes they were simply following the orders of someone else." (IDI, newspaper reporter, Phnom Penh)

Many participants are willing to give captured combatants the benefit of the doubt, and seem to be looking for an excuse to show mercy. Nearly every discussion of these scenarios prompted someone to suggest that the laws and courts should handle the case. Some cautioned that a captive might be innocent, while others said their behaviour would depend on whether or not their friend or relative was killed intentionally. (FG, female single heads of household, Phnom Penh; FG, male farmers/workers, Kompong Cham)

Questions about helping defenceless enemy combatants prompted these exchanges among civilians and fighters:

We will give him treatment, educate him to abandon the other side and join our side or leave the army. This can help reduce the revenge – or hatred.

Even if we kill him, our friend will not come to life again.

In addition, he [the enemy soldier] did not have the intention to kill our friend but in fighting, killing is inevitable.

(FG, male rural youth, Battambang)

[We] need to save, because we don't know who is bad and who is good...

We would save because we don't know where the bullet [that killed a loved one/friend] came from.

[Moderator: But he killed someone close to you.]

Leave that apart. When he recovers then we will work on it.

But not kill him.

Yes we have our anger. But if we kill, it would never end.

Any side if they are injured and run for our help, we need to help.

But if we saw [the killing] with our own eyes, we would not save.

(FG, female returnees, Malai)

I wouldn't save him, if he killed my friend.

I think we have to save him because the enemy that killed our friend is also a war victim. We save him because he was the enemy when he was holding the gun

and killed our friend, but when [he] is injured with no gun, no more power, he is also a civilian.

We wouldn't save him, if there is no law.

According to the law, we have to help him.

There [are] two points... Did the enemy kill my friend during a war or fighting or whenever? If the enemy killed my friend during fighting, I would save him.

The war victim is an innocent person being forced to be a soldier... we would save him.

(FG, former Khmer Rouge fighters, Malai)

In focus groups and in-depth interviews, there were a handful of combatants and civilians who said revenge or hatred would lead them to kill a captured combatant or not save one in need of help. But the vast majority went out of their way to explain that circumstances would force them to take such actions. Several women in a group of Phnom Penh market vendors agreed that killing captured combatants by the enemy would leave them no choice but to respond in kind. "The other side captured and killed ours," said one woman, "so we *have* to do the same [emphasis added]." (FG, female market stall vendors, Phnom Penh) A university student went through moral and military gymnastics to justify his position:

If we are talking about human rights, we should not kill him. But if we talk about the "jungle law" in Cambodia, we must kill him. If we don't kill and we release him then he will return and do the same again. If we kill him there will be nobody bothering us anymore. But it is wrong according to human rights law. We must kill. Because if we do not kill then he will just continue to [behave] like that. (IDI, male university student, Phnom Penh)

For the most part, however, Cambodians reject such actions. They harbour an honourable, Buddhist-inspired belief that all humans have the potential to be educated and to change for the better — an optimism that close to 30 years of horror have made them hold onto ever tighter.

If we capture the prisoner, we need to educate him to become a good person. (IDI, Buddhist monk, Phnom Penh)

If he is Khmer the same [as me], we should educate or instruct him. After that he can go back to his village. (IDI, male mine victim, Battambang)

Although he used to be our enemy, he is now incapable of retaliating... We should save him and let him live with us and educate him according to what we want. (IDI, monk in training, Phnom Penh)

For me I think I will take revenge. But it is difficult to do because human beings have feelings, so if they commit [a] mistake we can correct them. (IDI, university professor, Phnom Penh)

... victims can change and improve themselves. They can become leaders. (FG, male farmers/workers, Kompong Cham)

Breakdown of limits

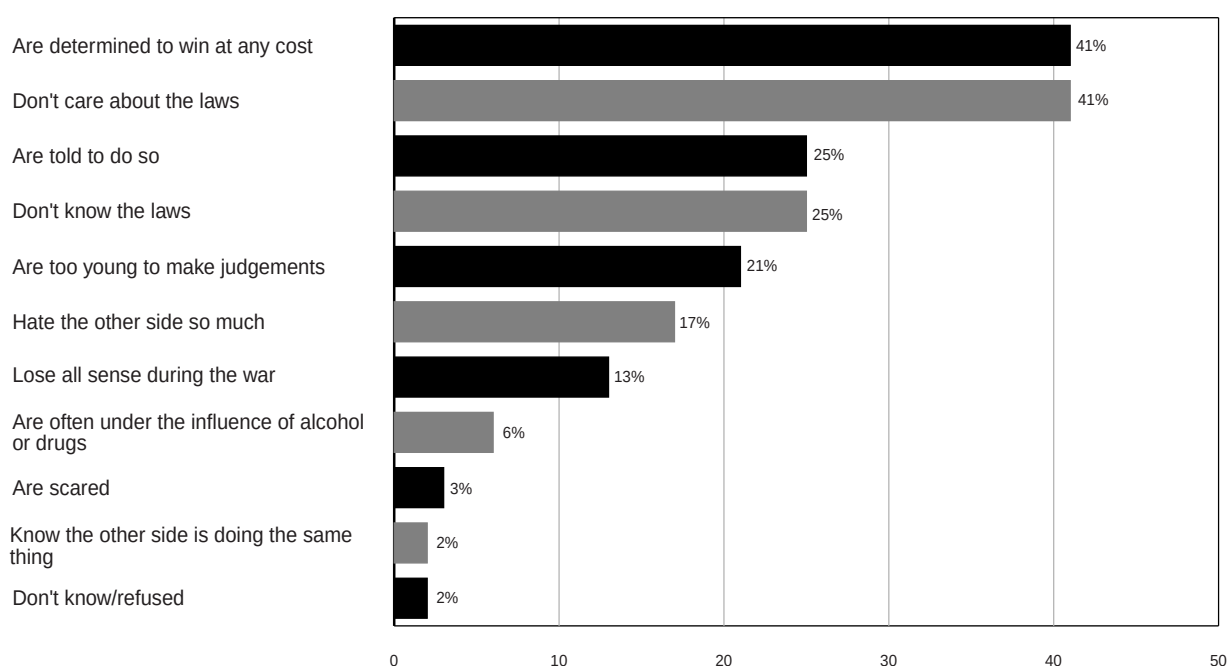
The ICRC consultation in Cambodia paints a picture of a populace that is fiercely protective of civilians and desperate for peace. Yet nearly 30 years of unceasing conflict have overwhelmed any attempts to separate civilians from combatants and made the concept of a normal, quiet life a seemingly unachievable goal. While political factions, armies, weapons and goals have shifted shape and character, the average Cambodian has borne the brunt of conflicts that are hard to fathom but all too easy to feel.

When asked to explain why soldiers and fighters attack civilians despite known prohibitions, Cambodian respondents are divided between those who see these attacks as the wilful acts of determined forces and those who want to relieve combatants of responsibility for their actions. Forty-one per cent of respondents say combatants are “determined to win at any cost”, 41 per cent say they “don’t care about the laws” and 17 per cent say they attack civilians because they “hate the other side so much”. A large number point to the weak character of combatants: 25 per cent say that they are following orders, 25 per cent that they don’t know the laws; 21 per cent that they are too young to make judgements; and another 22 per cent that they “lose all sense”, are under the influence of alcohol and drugs or are simply afraid.²⁹

FIGURE 11

Why combatants attack civilians

(per cent of total population responding)



Question: Which two of the following reasons best explain why combatants attack or hurt civilians, even though many people say it is not okay or maybe against the law. Is it because they...?

These responses help illuminate three of the key elements that have combined in Cambodia to dissolve the limits in war that are meant to protect civilians: deliberate anti-civilian policies that began under the Khmer Rouge; the chaotic nature of conflict; and the immaturity and ignorance of many combatants. The first of these elements differs from the other two in both intention and importance. Taken together, the three have helped ensure that attacks on civilians have been constant and unrestrained.

²⁹ The percentages add up to more than 100 because respondents were asked to pick two reasons from among the list.

Deliberate attacks on civilians

The years of Pol Pot's rule are best defined as a "war on civilians". From 1975 to 1979, civilians in Cambodia were not collateral casualties of conflict but, rather, the express targets of a genocidal regime. The "success" of the Khmer Rouge's policies can be measured not only in the towers of skulls and legions of broken families, but in the patterns it established. After 1979, the idea of civilians coming under attack — and indeed being subjected to torture and other kinds of treatment once reserved for combatants — were part of the Cambodian battlescape.

Civilian involvement in Cambodian wars, of course, did not begin or end with Pol Pot. During the 1970-1975 civil war, commanders in the army of Lon Nol and guerrilla fighters conscripted village youths throughout the nation and fought scores of battles in villages. During a decade of Vietnamese rule, foreign troops did not halt their attacks on villages simply because they were having trouble deciding who was a guerrilla fighter and who was a village resident. In fact, these kinds of attacks served only to strengthen anti-Vietnamese sentiments among Cambodians. In 1989, after the Vietnamese withdrew and peace talks between factions began, there was a brief hiatus in the civil war. When the talks broke down, Khmer Rouge commanders replaced their "treat the civilians well" policy with a scorched earth approach; combatants were ordered to "burn the people's property". As a group of former Khmer Rouge fighters recalled:

Destroying all, burning into ash was the objective of fighting the enemy... We could survive from 1979 until 1989 because of having support from Khmer citizens; after the Vietnamese withdrawal, we had to destroy [the] enemy's economy, and fight against the State of Cambodia. We didn't have any idea to [we did not set out to] destroy and burn our mother's home, our wife's home... We had to destroy anybody's [property] regardless of mother, father and relatives, in order to destroy the enemy's economy... We turned to burning houses, warehouses, cut off roads in order that the existing government lacked supplies so that they [the government] would compromise. (FG, former Khmer Rouge fighters, Malai)

The lasting influence of the Khmer Rouge era — during which a wrong word from a neighbour could mean a death sentence — can also be discerned in the deeply suspicious nature of Cambodian combatants and civilians. This suspicion, coupled with the guerrilla fighter's dependence on the local populace for support, has helped legitimize the notion of civilians as fair targets. In focus groups and in-depth interviews, a number of participants said civilians acted as "spies" and "disguised agents".

During fighting we can see many civilians, but if we do not destroy the civilians we cannot also destroy our enemy. Sometimes we think of law and sin and merits, but we have to destroy for our life. The civilians on the other side can be agents; although they do not carry weapons they can give information to the enemy. (FG, RCAF members, Kompong Som)

... we cannot know exactly whether they are real civilians or not, some of them could be spies who are trying to attack the soldiers from behind... In some cases, some civilians are the spies, messengers, food suppliers, etc., therefore there is inevitably some retribution. (FG, female urban youth, Phnom Penh)

Some civilians take rice, chickens and wine to the enemy soldiers. They are spies. So they were attacked because they were considered as the enemy as well. (FG, female single heads of household, Phnom Penh)

Sometimes they [soldiers] hate the civilians because they found out that the civilians provided food to the other side [enemy], therefore they must attack. (FG, former Khmer Rouge fighters, Malai)

Chaos and the nature of war

Chaos is a natural and often deadly part of war — a tangle of residents flees a city under siege; “friendly fire” wipes out an allied unit; villagers under artillery attack scatter into a minefield. In guerrilla warfare, chaos combines with intentional attempts by combatants to hide themselves among peaceful residents in order to escape the enemy. The result is combustible. Casualties multiply and, as time passes, the deaths of civilians gradually become an acceptable, if terrible, fact of war.

In Cambodia, chaos — both intentional (e.g., the 1975 Khmer Rouge evacuation of the cities) and unintentional (e.g., the 1997 Phnom Penh street riots that turned into pitched battles) — has been a critical player in the suffering endured by civilians.

Those who have been caught in the crossfire describe scenes in which anxious combatants combine with terrified civilians to produce confusion and random death. Combatants and civilians give reports of “confused and nervous” fighters who “feel disturbed by the civilians” and “lose [their] sense and feel agitated”. (IDI, male mine victim, Battambang; FG, female urban youth, Phnom Penh; IDI, deminer, Phnom Penh) Recalling harrowing moments, older women tell of soldiers who “just shoot around” or are “shooting randomly in the market”. (FG, female market stall vendors, Phnom Penh; FG, female single heads of household, Phnom Penh) Wielding a weapon in battle or supporting a particular faction does not seem to bear any relation to one’s fate.³⁰

In almost every focus group and in-depth interview, participants commented on the difficulty of distinguishing between civilians and combatants, particularly when Khmers fought Khmers. In such an atmosphere, they agreed, civilian casualties became “inevitable”.

The war in Cambodia was... not the war of patriotism. It was the war of grabbing power. They [soldiers] didn’t want to kill the civilians, but the other side was mixed with the civilians. So they can be killed; there was no option. There is no distinction [between soldiers and civilians in this type of war]. (IDI, government official, Phnom Penh)

[When there is] fighting between soldiers and soldiers in the same country, we all look almost the same... If we attack a village, we cannot see who are soldiers, who are the soldiers’ wives, and who are the real civilians. (FG, female urban youth, Phnom Penh)

In a war, I think, touching and harming is inevitable.

In a war, there is usually chaos, therefore harm to civilians cannot be avoided...

This [attack on civilians] is something that cannot be avoided sometimes. People live everywhere.

People cannot move on time when the war occurs. Sometimes the civilians are running back and forth in front of the soldiers, and when the soldiers are disturbed they shoot...

It cannot be avoided.

(FG, female urban youth, Phnom Penh)

One of the most interesting aspects of these discussions was the almost eerily uniform words that both civilians and combatants used to explain away the behaviour of soldiers and fighters.

³⁰ In fact, 71 per cent of combatants report having experienced six or more negative consequences of war, compared with 60 per cent of non-combatants. Similarly, 70 per cent of those who report having supported a side in the war say they experienced six or more negative consequences, compared with 59 per cent of those who say they were non-partisan.

Sometimes it was not on purpose [that soldiers attacked civilians], because people were running through bullets, when the [government] soldiers were fighting with the Khmer Rouge. Sometimes the bullets [or shells] just dropped in the bunker where people were hiding. (FG, male rural youth, Battambang)

The civilians are running in front of the bullets. It was not [the soldiers'] intention [to shoot them]...

It cannot be avoided during fighting.

(FG, female single heads of household, Phnom Penh)

The main objective in fighting is soldiers against soldiers either in the forest or in the villages. Therefore the harm to civilians is inevitable. Each side is fighting to win and occupy the target area.

I agree [that attacks on civilians are inevitable] because bullets don't have eyes, we don't have intention [to kill the civilians].

(FG, former Khmer Rouge fighters, Malai)

...in the fighting the bullets have no eyes. (IDI, male rural high school student, Kompong Speu)

They want to attack the soldier but they missed the target.

They want to prevent [people] from daring to join the army.

The bullet has no eyes, so sometimes it hits the people. They [soldiers and fighters] don't want to attack civilians.

(FG, female returnees, Malai)

While one woman noted "a lack of attention on monitoring the attacks on civilians", most participants bent over backwards to excuse the actions of combatants who killed civilians. (FG, female single heads of household, Phnom Penh) While a few participants appeared to be motivated by a desire to avoid placing blame, more seemed to genuinely believe that the chaos of battle combined with inexperienced combatants to leave civilians exposed to harm.

Character of the combatants

The character and background of combatants — their training, maturity and experience — are critical predictors of their behaviour during wartime. It is impossible, of course, to guarantee that a well-trained, well-disciplined professional army will heed the rules of war that protect civilians. In the heat of battle, as the ICRC consultation in war zones around the world demonstrates, even the most skilled practitioners of war can lose control of a situation. War promises safety for no one.

The odds of civilian casualties, however, are vastly increased when young, untrained and impressionable soldiers and fighters are pressed into service. They are much more likely to follow the orders of their commanders, no matter how many lives may be lost. Lacking even the most basic knowledge of the rules of war, they roam the countryside like packs of human landmines — armed to the teeth and indiscriminate in their choice of target. With such forces in the field, the potential for attacks on civilians, whether intentional or not, increases dramatically. Such, sadly, has been the case in Cambodia for decades.

Yet, no matter the era or the type of armed force under discussion, Cambodia has been home to combatants who share a reputation for disorder and brutality. These forces have included regular government troops, guerrilla fighters, militia members and commandos. Acting separately, but considered as a whole, these soldiers and fighters have exacerbated an already tenuous situation and put tens of

thousands of civilians into deeper danger as the conflicts have dragged on. A foreign military adviser put it simply: "...there are a core of people [civilians] who just want to be left alone... [but that] becomes difficult when every fourth person carries a weapon." (IDI, foreign military expert, Phnom Penh)

The roots of the troubles can be traced to the 1970-1975 civil war, when government commanders descended on villages across Cambodia to conscript unsuspecting young men. Khmer Rouge commanders competed for the conscripts and by the time they marched into Phnom Penh to take power in 1975, they had developed manipulation of armed young men into an art. Memories of the Pol Pot era are studded with stories of children barely big enough to hold a rifle off the ground.

Those who used violence were the young soldiers. They did not understand about life. They were in the armies of Lon Nol and the Khmer Rouge. They cut off the heads of the enemy. They had no feelings, no conscience. None at all. (IDI, government official, Phnom Penh)

There were children who [were] obliged to join the army when they did not know how to judge what is wrong or right... This is the role of the commander: to try to find many forces in order to scare the enemy. So they just conscript the children... (IDI, Buddhist monk, Phnom Penh)

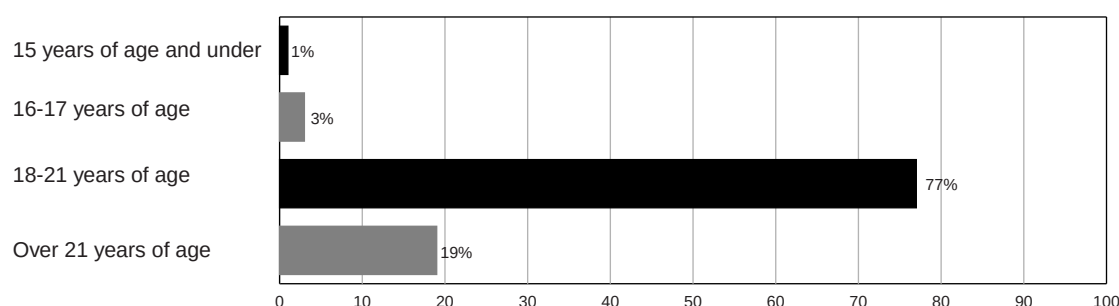
During Pol Pot's time the gun they carried touched the ground. They know nothing. If they are told to shoot they just shoot. (FG, RCAF members, Kompong Som)

The problem of child soldiers has declined in the 1990s, a trend that began with the arrival of the UN peacekeepers and was dramatically hastened by the mass surrender of Khmer Rouge fighters that began in 1996.³¹ But the harsh memories of the Pol Pot era are sharply reflected in current Cambodian opinion. In the survey, only 4 per cent of respondents say that a child younger than 18 is "mature enough" to take up arms. Seventy-seven per cent say that soldiers and fighters must be at least 18-21 years old, and 19 per cent say combatants should be over 21.

FIGURE 12

Child combatants

(per cent of total population responding)



Question: At what age is a young person mature enough to be a combatant?

In focus groups and in-depth interviews, participants say those under 18 were "hot tempered" and "thin-blooded" (impetuous), but that soldiers needed to be "thoughtful", "stable" and "have good

³¹ Commanders in the RCAF are still said to use "ghost soldiers" in order to meet unit quotas and attract supplies that can be traded on the black market. (IDI, government official, Phnom Penh; IDI, foreign military expert, Phnom Penh)

28 judgement.”³² Participants also offered explanations for why commanders would want raw, untested recruits in their ranks:

The [young soldiers] are brave... they have no judgement. They don't know about the soldiers' laws, and they don't know what is death. (IDI, newspaper reporter, Phnom Penh)

The younger soldiers [are], the worse tempered they are...
The mature one is thoughtful. The 17- and 18-year-old soldiers could even kill their parents when they are ordered to, and they are bad tempered, especially when they have guns in their hands.
(FG, female market stall vendors, Phnom Penh)

It is... easy for the commanders to give orders [to young soldiers], because the children did not have a conscience and are illiterate.
[Why do you think the commanders use these very young soldiers or fighters?]
They have enough strength for fighting; they don't have much education or training in human rights. They do not know what is good, what is bad. So they will simply follow the orders the commanders give them. (IDI, male university student, Phnom Penh)

...[young soldiers are] easy to use and [they] follow orders. They are not able to judge correctly. They will do what they are told to do. They don't [know] what is right and what is wrong. (IDI, monk in training, Phnom Penh)

It is easy to use [young people] for fighting. If they [soldiers] are educated, they will not go to fight because they are afraid of dying. (IDI, male mine victim, Battambang)

Don't know [why we were fighting]. It was their policy. They [the government] asked us to fight, [so] we fought. They asked us to join the armies, [so] we joined.
(FG, male rural youth, Battambang)

To this day, rank-and-file Cambodian soldiers are said to be disproportionately young, rural, poor and uneducated.³³ “They really are just civilians,” a long-time observer of Cambodian combatants and conflicts explained. “A soldier here [in Cambodia] is a guy who's been recruited or conscripted, usually conscripted, during war... In a lot of cases he is taken from the village because the village... couldn't pay for him not to be taken... anyone who can pay is not in the army.” (IDI, foreign military expert, Phnom Penh)

In addition to suffering from the ignorance of youth, the vast majority of Cambodian combatants have never received formal or systematic military training, let alone schooling in the rules of war. Combatants learn their trade in the jungle and the streets — a fact that has had enormous consequences for the shape of conflict in Cambodia.

We were all guerrillas, we didn't know human rights law, we didn't go to school, we didn't know how many articles in the law, we only learned how to shoot and kill...

³² FG, female market stall vendors, Phnom Penh; FG, female returnees, Malai; IDI, deminer, Phnom Penh; FG, female urban youth, Phnom Penh; FG, female single heads of household, Phnom Penh.

³³ The survey provides insufficient evidence on these questions because “combatants” were not separated according to the force they fought with or their rank.

The soldiers, at that time, didn't understand about the international law yet... didn't understand about the law of war, or any law. We didn't learn the laws of war.

(FG, former Khmer Rouge fighters, Malai)

They [Khmer Rouge troops] cannot read. They cannot write. If the commander leads them, they will do good. If not, they won't. (IDI, RCAF general, Phnom Penh)

These observations go a long way towards explaining why so many Cambodians bend over backwards to absolve regular soldiers and fighters of the lethal consequences of their actions. Disparate voices across Cambodia — of those who carried weapons and those who watched the battle; those who ran for their lives and the lucky few who stayed clear of the fray — reach a similar conclusion: blame the commanders. The combatants were only following orders.

Not all commanders think the same. Some are crazy, some are polite. (IDI, RCAF general, Phnom Penh)

If we were ordered to attack an army camp in which people were also there, we had to fight.

If people were wounded, we helped care for them.

...soldiers must follow their orders, although we don't want to harm anybody...

We were under the dictatorial leadership, we had to follow them in order to survive...

Because the soldiers had to fight for the target area, we aimed at the enemy side, and there was no order for not attacking the civilians.

...we had to achieve the plan of our leader.

(FG, former Khmer Rouge fighters, Malai)

If they [soldiers] want to do anything they need to have orders from their commanders. (IDI, rural male high school student, Kompong Speu)

It is really up to the officers in war to decide what is allowed or not. It is this [their attitude] that sets limits... depend[s] on the captain, the commander. If he has a sense of morality... Do you understand? Soldiers will follow the spirit of their commander. If he has a humanistic spirit, the soldiers will have limits set on the destruction, on what they can fire upon. (IDI, government official, Phnom Penh)

We cannot say "good soldier" or "bad soldier". Any soldier in the battlefield, they had to listen, they had to obey their commanders... I am not a soldier, but I think if I was... I would kill any people according to the order of my commander. (IDI, journalist, Phnom Penh)

Sometimes I interview the soldiers — Khmer Rouge soldiers and State of Cambodia soldiers. I ask them, "Why [are] you fighting?"... the Khmer Rouge say, "I fight the Vietnamese because my commander says that the Vietnamese come to Cambodia." And when [I] see the State of Cambodia [soldiers], I ask, "Why [do] you kill the Khmer Rouge?"... [They say] "My commander says the Khmer Rouge are the bad guys, so I have to fight"... I think most of the soldiers, nearly

all, [are] the simple soldiers... [who] don't know anything about war... what they have done they have done according to their commanders. (IDI, journalist, Phnom Penh)

The extent of this sentiment is perhaps best measured by the comments of a former refugee who has been resettled in Cambodia's north-west. Asked about the treatment of prisoners of war, she responded to a fellow villager who had flatly said that Khmer prisoners were released while the Vietnamese were killed. "Sometimes we also released the Vietnamese by allowing them to go abroad," she countered. "They were forced to fight by their commander." (FG, female returnees, Malai)

International law and institutions

Geneva Conventions

The Geneva Conventions and other international laws of war are not well known in Cambodia. Only 23 per cent of respondents say they have heard of the Geneva Conventions, and only 52 per cent of that group could describe them accurately — leaving about one in ten Cambodians who demonstrate a real understanding of their purpose. When asked to describe the Geneva Conventions, almost four out of ten respondents (38 per cent) say they were meant to protect civilians and vulnerable groups during wartime. Sixteen per cent of those surveyed say the purpose of the Geneva Conventions is to limit wars or help solve conflicts, and 7 per cent say it is to protect human rights.

Combatants are more likely than non-combatants to have heard of the Geneva Conventions (30 per cent versus 22 per cent), much more likely to describe them accurately (66 per cent versus 50 per cent), and three times more likely to talk about their role in protecting prisoners of war (13 per cent versus 4 per cent).³⁴ Knowledge of the Conventions rises sharply with educational level: urban residents were almost twice as likely as the rural population to be aware of them (37 per cent versus 20 per cent).³⁵

The survey offers mixed evidence of the potential impact of knowledge of the Geneva Conventions on people's attitudes to wartime behaviour. On the one hand, those who have heard of the Geneva Conventions prove to be more protective of enemy combatants and more likely to condemn the people who violate the rules of war. Compared with those who are not aware of the Geneva Conventions, they are:

- about half as likely to say they would *not* save or help a defenceless enemy combatant (7 per cent versus 15 per cent);
- less likely to approve of torturing prisoners (31 per cent versus 39 per cent);
- significantly more likely to say that war criminals should be punished (81 per cent versus 51 per cent).³⁶

On the other hand, there is no difference between the two groups when they are asked whether they sanction the reciprocal killing of prisoners. Knowledge of the Geneva Conventions, moreover, has virtually no effect on whether respondents believe that combatants should “leave civilians alone” or “avoid civilians as much as possible”. Questions about actions by combatants that could harm civilians — depriving them of food, medicine or water, attacking populated villages or planting mines — reveal little or no difference between those who have or have not heard of the Geneva Conventions.

After being read a description of the Geneva Conventions, Cambodians display an extraordinary level of optimism when asked about their power to make a difference during wartime. Eighty-six per cent of respondents agree that “the existence of the Geneva Conventions prevents wars from getting worse”, while only 4 per cent say it “makes no difference”.³⁷ The optimism of Cambodians is perhaps best explained by their respect for international law (see the section on Law, religion and justice, p. 13) and their high regard for the power of international institutions in the wake of the UN-supervised 1993 elections (see the section on The impact of the United Nations, p. 39).

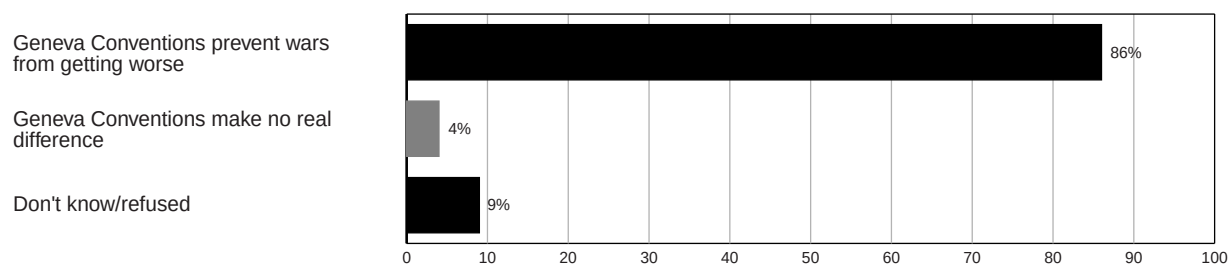
³⁴ In line with these findings, 26 per cent of men have heard of the Geneva Conventions, compared with 20 per cent of women; of this group, 57 per cent of men offer an accurate description of their purpose, compared with 47 per cent of women.

³⁵ Ten per cent of those without any formal education have heard of the Geneva Conventions, compared with 14 per cent of those with some primary schooling, 23 per cent of those who have completed primary school, and 52 per cent of those who have had a secondary education or more.

³⁶ This difference stems in large part from the number of respondents who say they do not have an opinion or refuse to give an opinion. Only 13 per cent of those who are aware of the Geneva Conventions have no opinion, compared with 40 per cent of those who have not heard of them.

³⁷ There is evidence that proximity to the war yields more optimism about the impact of the Geneva Conventions. Combatants are slightly more likely than non-combatants to believe in their efficacy.

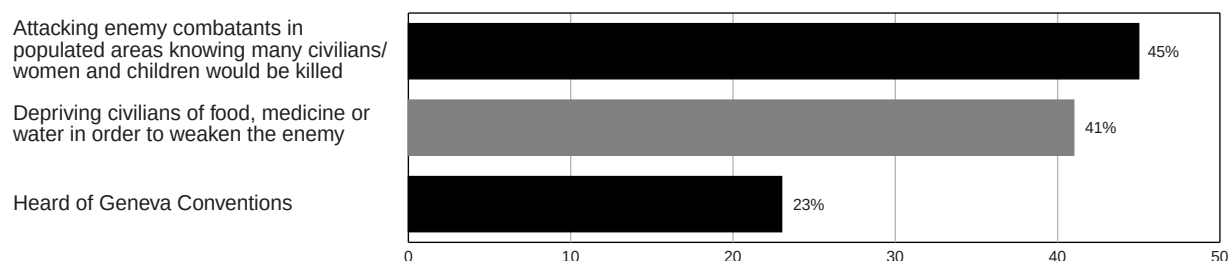
FIGURE 13
Impact of Geneva Conventions
(per cent of total population responding)



Question: Do you think the existence of the Geneva Conventions prevents wars from getting worse or does it make no real difference?

Compared with their awareness of the Geneva Conventions, Cambodians are highly knowledgeable about the existence of specific laws that are meant to protect civilians during wartime. Forty-five per cent of respondents say they know of laws that prohibit attacks on populated villages or towns in which many civilians would be killed (almost twice as many as have heard of the Geneva Conventions.) Forty-one per cent say they are familiar with laws that prohibit soldiers and fighters from depriving civilians of food, medicine or water.³⁸ The focus groups and in-depth interviews reveal only the vaguest understanding of these laws. “It is the law of the legislative body inside and outside the country”, a Buddhist monk said in a comment typical of many. “I don’t know what it says. I just heard that there is [a law].” (IDI, Buddhist monk, Phnom Penh)

FIGURE 14
Knowledge of laws
(per cent of population responding “yes”)



Question: Are there laws that say you can’t do that, even if it would help the enemy?

Knowledge of specific laws that exist to protect civilians appears to have little relation to people’s attitude towards attacking civilians. Combatants are much more likely than non-combatants to know of the existence of laws that prohibit attacks that could harm civilians (62 per cent versus 42 per cent) or depriving them of food, medicine or water (52 per cent versus 39 per cent). At the same time, however, they are less likely to characterize such actions as “wrong”, and are significantly more likely to say they are just “part of war”. Combatants are twice as likely as non-combatants to say attacking populated villages or towns is “part of war” (18 per cent versus 8 per cent) and nearly three times more likely to sanction depriving civilians of food, medicine or water (26 per cent versus 9 per cent).

³⁸ There is a clear correlation between knowledge of the Geneva Conventions and knowledge of such laws. For example, 58 per cent of those who have heard of the Conventions say they know of laws that prohibit attacks on populated villages or towns knowing many civilians would be killed, compared with 43 per cent of those who have not heard of them.

In sum, the ICRC consultation in Cambodia provides no evidence that knowledge of the laws and rules of war — including laws that specifically prohibit actions that lead to civilian casualties and suffering — will result in better protection for civilians caught in the crossfire.

International court and punishment of war crimes

The depth of the debate in Cambodia over the punishment of war criminals is matched by few countries in the world. Dealing with the remaining leaders of the Khmer Rouge in the aftermath of Pol Pot's death has generated tremendous domestic and international pressure on the Cambodian government.

The ICRC consultation reflects the difficult dilemma that confronts the Cambodian people. On the one hand, they want to punish those who wreaked havoc upon their families and devastated their nation. On the other hand, they are physically and psychologically exhausted by so many years of conflict; they want to move beyond the “killing fields” and bequeath their children a more unified and prosperous nation.

In contrast to almost every other question posed to them, very high rates of respondents say they have no opinion or refuse to answer when questioned on the punishment of war criminals. In some focus groups there was a palpable feeling of discomfort and anxiety when these questions were raised. Discussions revealed a tremendous level of distrust of the current Cambodian government — a distrust that finds its roots, ironically, in the actions of the Khmer Rouge leaders who may now stand trial for the war they waged against their countrymen.

A strong majority of Cambodians — 57 per cent — say that there are wartime rules and laws so important that those who violate them deserve to be punished. Only 8 per cent of respondents disagree, while more than one-third (35 per cent) say they have no opinion or refuse to answer the question. That so many people remain undecided or are silent testifies to the extent of Cambodia's ambivalence to these issues and the high stakes in the battle for public opinion. The data indicate that young people aged 18 to 29 are among those least likely to support punishment, although gaps like this are due in large part to disproportionate numbers of undecided respondents.³⁹ (See Figure 15.)

Among Cambodians who believe that those who violate wartime rules should be punished, there is virtually no disagreement as to what should be done. Ninety-one per cent say that wrongdoers should be put on trial. Only 7 per cent say that people who commit such crimes should be forgiven or forgotten or that they should be granted amnesty. Combatants are somewhat less likely than non-combatants to say war criminals should be tried (86 per cent versus 93 per cent).

The issues of which rules wrongdoers should be punished for breaking and which institutions should take charge of prosecuting war criminals are among the most difficult currently facing the government in Phnom Penh. At the centre of this controversy lies the critical decision as to whether Cambodia should cede responsibility for punishment to the international community or control the process itself. On balance, the survey, focus groups and in-depth interviews indicate support for the international community's involvement. Cambodians, however, are by no means speaking with a single voice.

Almost two-thirds (64 per cent) of the respondents who believe that war criminals should be punished say wrongdoers should be prosecuted for violating international law, including human rights law, the Geneva Conventions and other rules governing wartime behaviour. Thirty-five per cent cite Cambodian law. In a similar vein, a majority of respondents — 54 per cent — want an international criminal court to be responsible for prosecuting those who break these laws. Forty-four per cent say they would rather the Cambodian courts or government take charge of the process.⁴⁰

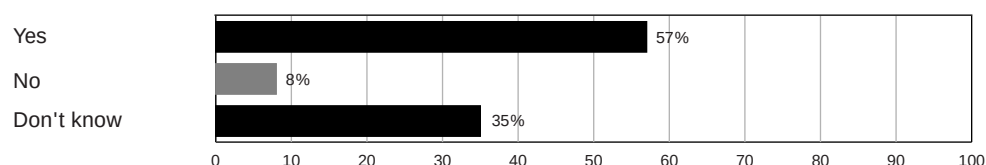
³⁹ Unexpected results on this question can be ascribed in large part to the number of undecided. For example, 77 per cent of combatants favour punishment, compared with 54 per cent of non-combatants. But only 17 per cent of combatants are undecided, compared with 37 per cent of non-combatants. This “undecided gap” has a similar effect on data ranging from level of education to number of negative consequences experienced during the war.

⁴⁰ Combatants are more likely to opt for an international court; 62 per cent of those who took up arms choose this option, compared with 52 per cent of non-combatants.

FIGURE 15

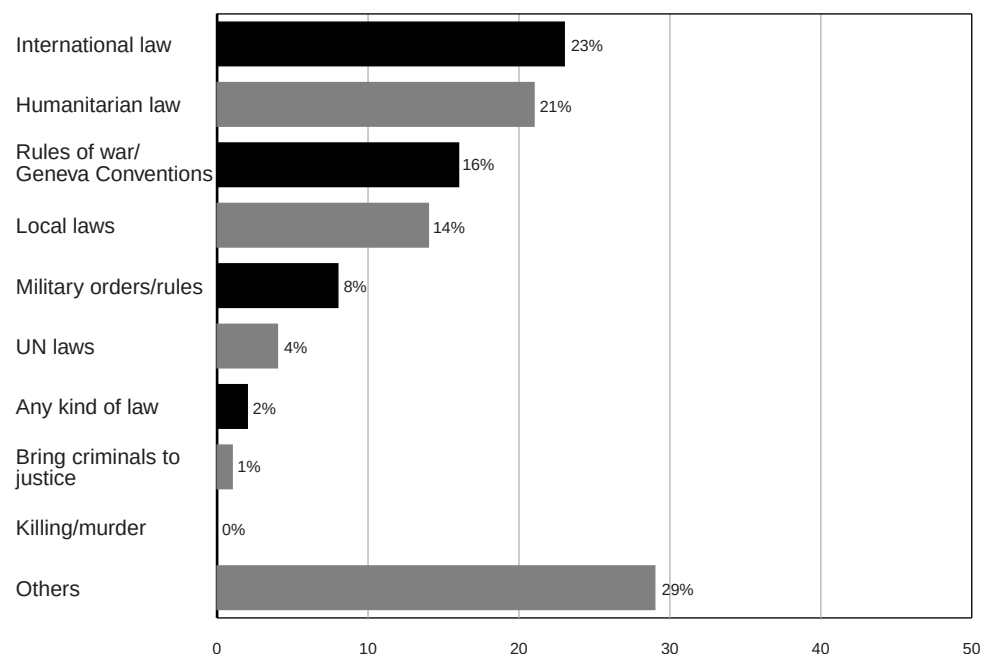
War crimes

(per cent of total population responding)



Question: Are there rules or laws that are so important that, if broken during war, the person who broke them should be punished?

(per cent of those who responded "yes")



Question: What are these rules based on?

Women and those with less education are more likely to support charging the Cambodian courts and government with responsibility for punishing war criminals. Fifty-two per cent of women believe that Cambodian institutions should hold the trials, compared with 36 per cent of men. Fifty-six per cent of those with less than a primary level education want to put the matter in the hands of domestic institutions, compared with only 28 per cent of those who have gone beyond primary school. Respondents who say they were mistreated while imprisoned or living under enemy control are much more likely to place their faith in Cambodian institutions than are those who say they were treated correctly (48 per cent versus 30 per cent).

Cambodians' ambivalence and confusion emerged in a lengthy exchange among young men sitting in a village square in the country's north-west:

It should be Khmer [to conduct the trial]. It is the Khmer suffering. The Khmer Rouge did not harm the international [community]...

It is difficult to say. It is right to say Khmer should do the trial, because they kill Khmer. But an international trial is also right. If the Khmer will do the trial, we [the ordinary people] will not know what is going on. They just broadcast it on TV and if they say something [is right or wrong] we just follow.

In my opinion, it is better [to have] an international trial, because they will be impartial. They are not Khmer and use [a] different language...

If the international [community] does the trial they should look at Khmer [situation] as well. In Cambodia, we have different factions. If the international [community] wants to do the trial, they should have [a] long presence in Cambodia like UNTAC. If not, there might be this faction or that faction going into the forest and start fighting again.

I am afraid of bias. [But] if there is no bias, Khmer should [conduct the trials] by themselves, because it is Khmer suffering.

[Moderator: So you agreed to have an international trial on condition that...?]

They cooperate with the Khmer [court].

And stay long enough [like] the UNTAC. Even [when] we had UNTAC, still many people died.

It should be a Khmer court with international cooperation.

[Moderator: Do you want to see 50:50 or more international [judges]?]

It would be better if we have more international.

It is okay to have half and half. They [Khmer judge] dare not do anything [inappropriate].

(FG, male rural youth, Battambang)

Participants expressed cynicism about the prospect of fair trials if the government took complete charge of the prosecutions. In a focus group in the city of Kompong Cham, farmers and workers said only an international court could conduct a fair trial. "[There is] no need [for trials] to be carried out by the national court because of corruption," one flatly stated. (FG, male farmers/workers, Kompong Cham) A top-level government official warned what would happen if prosecution of war crimes was the province of political parties. "Certainly, they [soldiers] need to be punished. But not by the political parties. If someone [who] is related to the parties in power broke the laws they would never be punished." (IDI, government official, Phnom Penh)

The role of the ICRC/Red Cross

The ICRC/Red Cross is both well known and well respected in Cambodia. As with representatives of the international community in Phnom Penh, the organization operates to some extent in the shadow of the UN. The organization's continuing role in helping families trace missing relatives has given it a special standing.

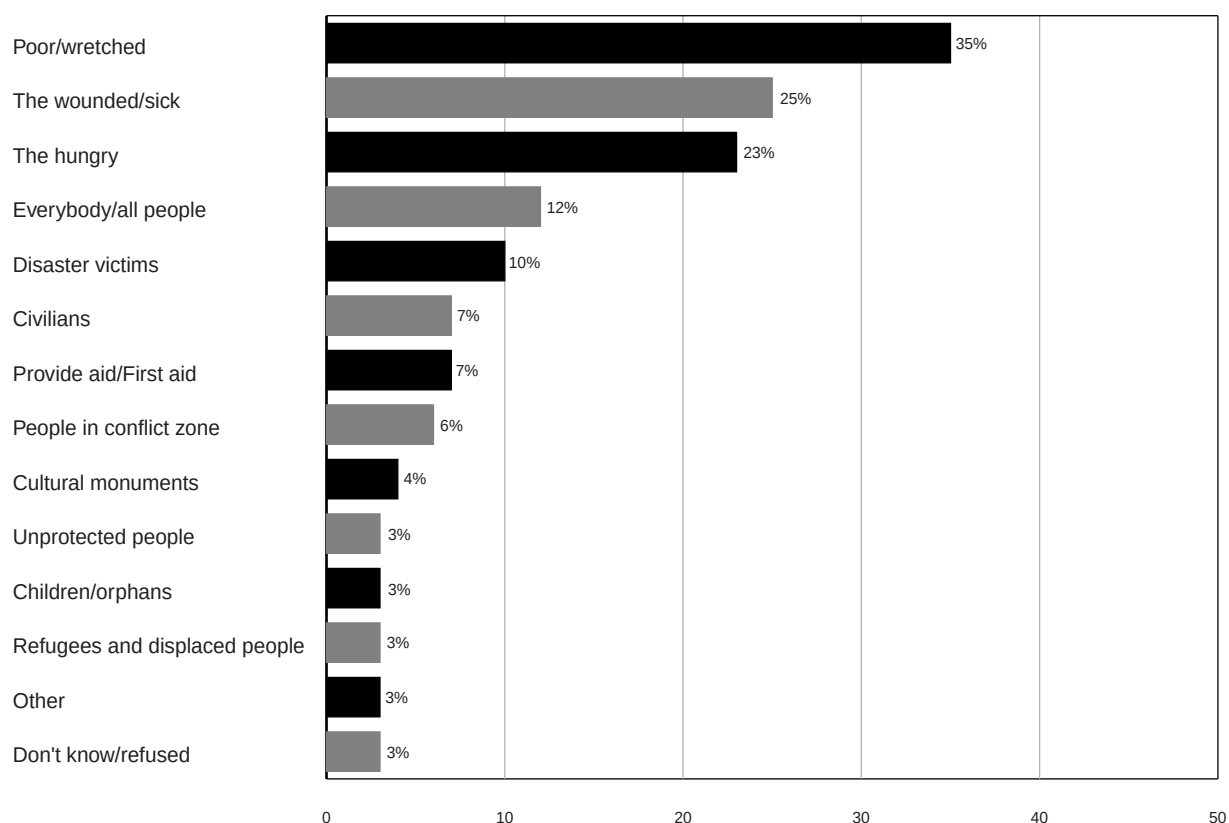
Eight out of ten Cambodians (81 per cent) can properly identify the red cross emblem, while 17 per cent say it stands for medical personnel or facilities. The organization is better known in Cambodia's cities than in the countryside: 91 per cent of urban residents correctly identify the emblem, compared with 79 per cent of the rural population.

Cambodians view the red cross emblem as protecting the most vulnerable members of society, rather than victims of war. The emblem is seen as the protector of the poor and wretched (35 per cent), the wounded and sick (25 per cent), the hungry (23 per cent) and victims of disaster (10 per cent). Twelve per cent of respondents volunteer that the emblem protects people in conflict, "unprotected" people and refugees or those displaced by war.

FIGURE 16

Red Cross and protection

(per cent of total population responding)



Question: What kind of people or things does this symbol (red cross emblem) protect?

The traditional role of the ICRC in visiting prisoners of war and monitoring their treatment is not specifically recognized by Cambodians. Asked who should be allowed to visit captives, six out of ten respondents mention ICRC representatives. But 82 per cent choose representatives of human rights in the

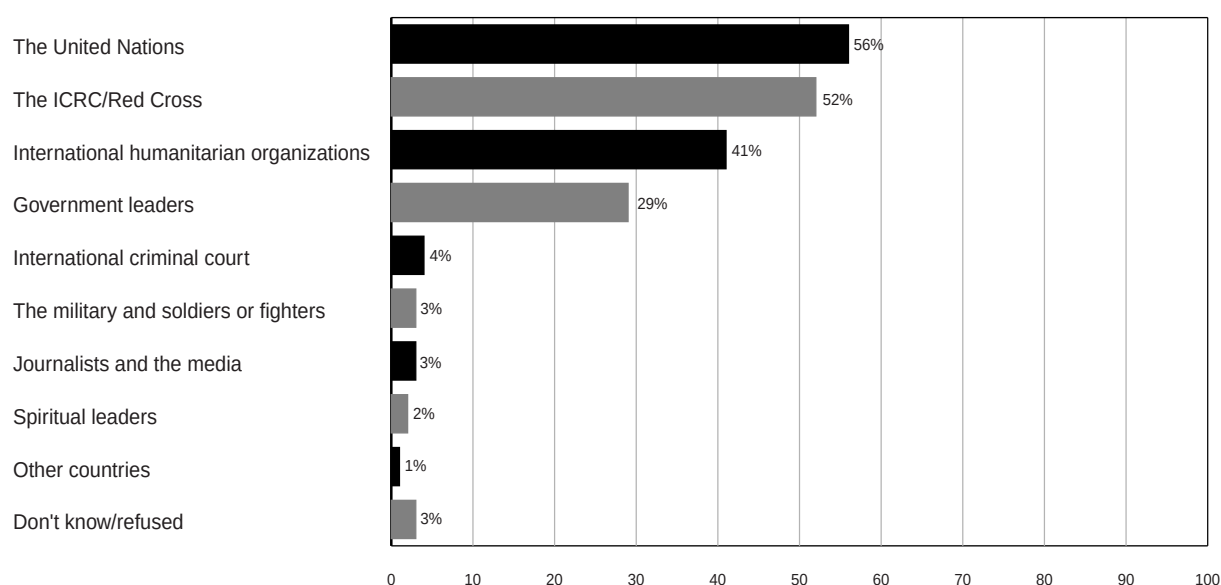
groups and 63 per cent identify UN personnel. It is an apt symbol of the “competition” among the scores of international institutions and NGOs that have come to Cambodia in the 1990s; with so many players in the field, it has been difficult to claim a special responsibility for any service.

Cambodians give equal credit to the UN and the ICRC/Red Cross when asked which organizations and people have done the most to protect civilians from attacks during wartime. Fifty-six per cent credit the UN with playing the most effective role and 52 per cent identify the ICRC/Red Cross. About four in ten respondents cite the work of international humanitarian organizations and three in ten recognize the work of Cambodian government leaders. Those who lived outside battle zones, non-combatants and women are all more likely to cite the work of the ICRC/Red Cross than that of their counterparts.⁴¹

FIGURE 17

Biggest role

(per cent of total population responding) (top two responses)



Question: I'm now going to describe different kinds of people and organizations. Please tell me which two of these have played the biggest role during the war to stop civilian areas from being attacked or cut off from food, water, medical supplies and electricity.

However, Cambodians overwhelmingly cite the ICRC/Red Cross as the organization to which they would turn in times of need. Nearly two-thirds of respondents (64 per cent) say they would seek help from the ICRC/Red Cross if their towns or villages were attacked or their food, water, medical supplies and electricity were cut off. Only 8 per cent say they would turn to the UN for help under such circumstances; 19 per cent would appeal to the Cambodian authorities, while 11 per cent cite humanitarian organizations. Combatants are less likely than non-combatants to ask the ICRC/Red Cross for help and more likely to put their faith in human rights organizations and the UN.

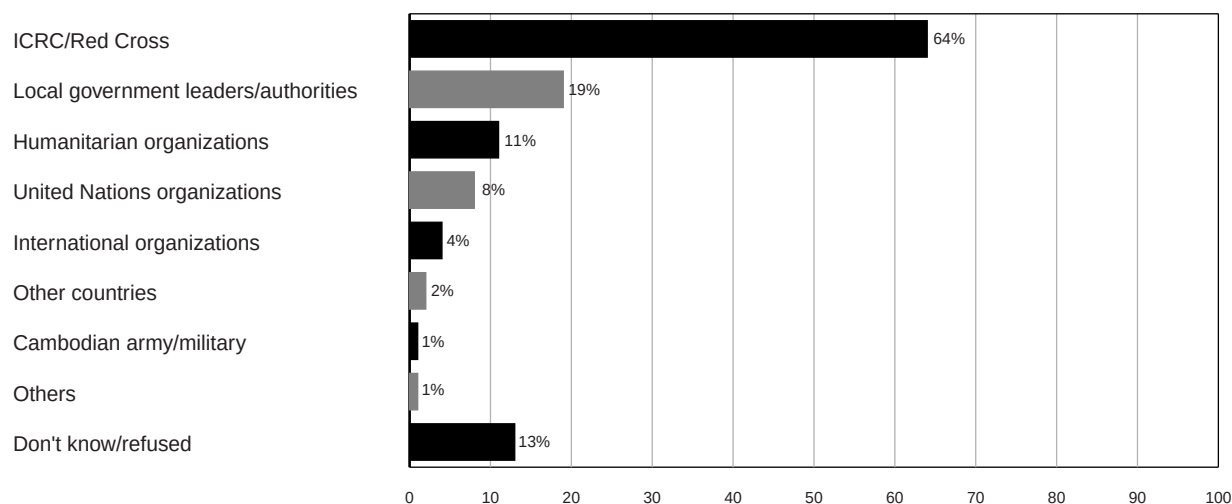
This line of questioning also reveals the depth of the Cambodian people's distrust of their government. Only 1 per cent of respondents say they would turn to the Cambodian armed forces for help and even fewer say they would ask their authorities for help. In addition, a remarkable 97 per cent of Cambodians say they would like to see more intervention from the international community to help protect civilians in need.

⁴¹ Fifty per cent of those who lived outside battle zones mention the ICRC/Red Cross, compared with 49 per cent of those who lived where fighting occurred. Fifty-four per cent of non-combatants cite the ICRC/Red Cross, compared with 43 per cent of combatants. Fifty-seven per cent of women, compared with 47 per cent of men, mention the ICRC/Red Cross.

FIGURE 18

Turn to for help

(per cent of total population responding)



Question: Let me ask what can be done if during the war civilian areas are attacked, towns or villages are cut off from food, water, medical supplies and electricity? Whom would you turn to get help or to be protected?

focus groups and in-depth interviews, Cambodians mentioned the work of international organizations, but their reflections on wartime painted a desperately dire picture of the reality faced by civilians who found themselves caught in the midst of battle. In a group of farmers and workers, one man said villagers could turn only to “trenches [and] bunkers”, while another said, “We would get away from the bullets first, then think later.” (FG, male farmers/workers, Kompong Cham)

[Moderator: Who can civilians turn to for protection?]

They need to help themselves by finding their own bunker to hide [in].

No one helps. They just escape from one place to another.

One must help oneself.

We cannot go out for help if there is fighting.

We need to help ourselves first before other[s] can help us.

(FG, male rural youth, Battambang)

They turn to powerful people in the village to help them.

Go to the temple, because it is a worship place, and it is a place they will not attack...

Run for the medical staff or soldiers who frequently come to our village and love us.

Run for the bunker or just escape.

Pray for God's help.

Can't turn to anybody, because the soldiers are fighting. We can't ask for their help.

Help yourself, during fighting no organizations can help us.

(FG, female single heads of household, Phnom Penh)

Escape and run by ourselves.

Prepare for ourselves.

Protect ourselves.

No one can be turned to as they are also running. We just run following the orders.

(FG, female returnees, Malai)

They need to escape from their place.

They help themselves.

Sometimes they come to soldiers for help.

Only after the fighting can they go to organizations for help.

(FG, RCAF members, Kompong Som)

The impact of the United Nations

There is perhaps no country on earth where the UN is more respected than Cambodia. For 18 months — from March 1992 to September 1993 — the nation came under the direct control of the leaders of the 22,000-member military and civilian peacekeeping force known as UNTAC (United Nations Transitional Authority in Cambodia). It was the largest peacekeeping force ever dispatched by the UN and, for Cambodians, extraordinarily successful in its efforts to bring calm to the nation and hold elections. An astounding 87 per cent of those surveyed say that UNTAC made the situation in Cambodia better. Only 2 per cent say that it made matters worse.

In focus groups and interviews, participants credited UNTAC for its supervision of fair elections, its help in returning the nation to a degree of normalcy and its positive impact on their economic circumstances. “They ensured the freedom for people to vote for... the leader who can bring an end to the war,” a university student said. (IDI, male university student, Phnom Penh) The only complaint focused on the introduction of the HIV virus and AIDS to Cambodia by the troops.

It is better than before [UNTAC came].

It is easy to do business. There is progress.

UNTAC spread AIDS.

Without UNTAC my life would be terrible.

They [UNTAC troops] could protect us during the election.

(FG, female market stall vendors, Phnom Penh)

It [UNTAC] made a difference. We had a free and fair election to select our representatives.

They found peace for the Cambodian people.

It is better than before to a certain extent. People have [a] chance to do business easier. No “K5” and no amputees by the K5.⁴²

Except one thing [which is not good], they introduced HIV/AIDS to Cambodia.

No difference. Cambodia is still the same. I used to sell vegetables and now I still sell vegetables.

(FG, female single heads of household, Phnom Penh)

When UNTAC came the situation in Cambodia became better than before.

Good, all good.

When UNTAC came, I had not surrendered yet. But I used to see and hear some [of the troops]; they were quite good. But after UNTAC left everything came back, fighting continued.

It is a bit better...

Without UNTAC in Cambodia, I wouldn't be able to go for a drive in the capital city and [a] provincial town like this. Generally speaking... it is 90 per cent good.

(FG, former Khmer Rouge fighters, Malai)

⁴² “K5” refers to the project to build a fence along the Thai border. In the process, malaria and landmines killed thousands.

As has been noted, the work of UNTAC — and the favourable impression it left behind — has spread into positive feelings about other international institutions and the work of the international community in general. Today, as the government in Phnom Penh faces the question of how to punish the leaders of the Khmer Rouge, the UN and other international groups are pressuring the Cambodian government to internationalize this process. Whether the enormous goodwill that the UN built in Cambodia can be translated into influence in this critical matter is a question awaiting an answer.

Future prospects and fears

On the surface, Cambodians are overwhelmingly optimistic about the future of their nation. In the survey, 81 per cent of respondents say they believe peace will last in Cambodia, compared with only 11 per cent who say there will be more war. But scratching that surface — examining the hopes and fears expressed in focus groups and interviews — reveals that these results are most likely the product of a desperate need among Cambodians to believe that the future will be better.

In fact, deep pessimism and tremendous anxiety dominate Cambodian visions of what lies ahead for their nation. Tired of having their expectations dashed by yet another round of violence and distrustful of their government, Cambodians are not yet ready to believe they can escape the cruel legacy of their past. Their hopes for the future are haunted by the living remnants of the Pol Pot era, fearful of another foreign invasion and worried that power struggles in Phnom Penh will bring yet more conflict to their land — the very same elements that have done so much to shape their attitudes to wars long past.

As has been discussed, Cambodian society is in the midst of a divisive public debate over how best to exorcise the ghost of the Khmer Rouge. Finding a solution that will satisfy the survivors and mollify the international community will be far from easy. The in-depth research reveals a great deal of anxiety among Cambodians about whether the government can find the proper balance — and hints that failure to do so could result in political instability. “The leaders are the killers,” said one woman who fled the Khmer Rouge. “Justice is not yet found. And the people are suffering.” (FG, female returnees, Malai)

Ten years have passed since the Vietnamese ended their occupation of Cambodia, and strategic and economic circumstances in South-east Asia have fundamentally changed in that time. The global spotlight has shone on Cambodia, and Phnom Penh is now home to a large international community bent on bringing progress to the nation. Yet history, vivid memories and a feeling of impotence in the face of bigger, stronger neighbours have left the people of Cambodia still anxious about the prospects of another foreign invasion of their land.

When asked about their greatest fears for the future, participants in focus groups and interviews were quick to speak of fears of “losing the country, losing the territory.” (FG, female market stall vendors, Phnom Penh) “The east part of Cambodia is almost gone, the west part is the same,” one farmer remarked, while another asked foreigners “to feel pity [for the] Khmer because Khmer is running out of land for rice cultivation.” (FG, male farmers/workers, Kompong Cham) Several participants made direct appeals to the international community to help guard Cambodia’s borders and to keep in check the neighbouring Vietnamese, Thais and Laotians. (FG, male rural youth, Battambang; FG, female market stall vendors, Phnom Penh)

We want our land, our territory to stay without any invasion. We want the UN to help look at our Cambodian country, not allow Cambodia to be gradually swallowed, [so] Cambodia becomes smaller and smaller, and finally like [the] Cham people who don’t have any more land and have to live on boats. (FG, female market stall vendors, Phnom Penh)⁴³

I am worried that Cambodia will be under the rule of other countries.
I am afraid of losing territory.
I am afraid that the other countries will invade our territory.
I am afraid that we will lose our culture and civilization.
(FG, female urban youth, Phnom Penh)

⁴³ The Cham are a small ethnic minority, many of whom live in the so-called “floating villages” in the nation’s central region.

While the odds of another foreign invasion are small, there is a much stronger chance that the future will vindicate those Cambodians who are deeply concerned about ongoing power struggles in Phnom Penh. To be sure, worries about clashes between armed forces attached to the various parties have declined. But the in-depth research reveals an exceptional level of cynicism about the motives of the leaders of Cambodia's political parties. (IDI, newspaper reporter, Phnom Penh) "The [Cambodian people] don't want to fight," noted a general in the RCAF. "Politicians are always fighting together. Let them fight. Use the media, newspapers, radio but no weapons..." (IDI, RCAF general, Phnom Penh)

Party leaders are viewed as power hungry and corrupt, ready to sacrifice the best interests of the people for their individual ambitions — ready, as one government soldier put it, to "kill people for their own power." (FG, RCAF members, Kompong Som) Cambodians view politicians as endowed with an almost supernatural power to start and stop wars at will, and point out the mixed blessings of democracy.

Unless the tops [top leaders] are on good terms [with each other] there will be no peace.

If they do not agree with each other there will be war...

I think if the government leads [the country] correctly, there are no conflicts, and there is no opposition party, I believe there will be peace. But if there are opposition [parties] there will still be conflicts — armed or political I don't know.

I don't hope for a total peace because there is still opposition party.

If the parties are not yet on good terms I think there may be war again.

(FG, female returnees, Malai)

Participants in focus groups and in-depth interviews — and young people in particular — singled out the issue of corruption as a major cause of their fears about the future. A teenager in a north-western village estimated that "in Cambodia there are 40 per cent good people and 60 per cent bad people" while another warned that "if corruption is still there, there will be hatred and division." (FG, male rural youth, Battambang) A university student displayed a boundless contempt for leaders in Phnom Penh:

When there is corruption, there are people [who] do what they want. Even if people die, they don't care... they [just] want to win... the government does not care about its own people. When they have power they misuse it. (IDI, male university student, Phnom Penh)

These fears and this disillusionment are countered, to some extent, by the Cambodian people's common recognition that war is a "chronic disease", one that must be brought under control if their nation is to move forward. (FG, former Khmer Rouge fighters, Malai) Cambodians today are ready to absorb the lessons of their history, and to seek reconciliation. They are exhausted by conflict and yearn for a semblance of normalcy in their lives. Having endured devastation, death and destruction on a scale unknown in all but a handful of the world's nations, they are committed to leaving their children a calmer, more stable and more prosperous country.

And yet in the back of their collective conscience lurks the thought that, try as they might, they cannot escape conflict. "I think it is not yet the end of the war," a university professor said. "They [the leaders] still struggle for power." (IDI, university professor, Phnom Penh) A former soldier who now devotes his working life to removing landmines, the ever-present reminders of his nation's violent past, echoed this dark sentiment. "In my personal opinion, I don't think we can avoid [another war], but for what reasons or what cause I don't know. But I can say it can't be avoided in Cambodia." (IDI, deminer, Phnom Penh)

Annex 1: General methodology

The ICRC's worldwide consultation on the rules of war, which is the cornerstone of the People on War project, was carried out in 12 countries that have been ravaged by war over the past decades. In each case, the ICRC conducted a public opinion survey with a representative sample of the country's population and organized in-depth interviews and focus groups with those involved in or directly affected by the conflict.

For comparative purposes, the views of people were also sought in France, Russian Federation, Switzerland, United Kingdom and United States on the basis of the opinion survey only.

The consultation was based on three principal research methods:

- A survey of 1,000 (in some cases 1,500) respondents representative of the country's general population;
- Focus groups (between 8 and 12 depending on the country) allowing a professionally moderated and intensive discussion in small groups;
- In-depth, face-to-face interviews (about 20 in each country) with individuals with specific war experiences.

In almost every case, the ICRC and local Red Cross or Red Crescent staff conducted the interviews, organized the focus groups, including recruitment of participants, and helped with translation/interpreting. Greenberg Research, with a local partner company, developed the sample design for the survey, processed data in electronic form, provided moderators and prepared transcripts.

Opinion survey

Questionnaire. The opinion survey questioned people on their war experiences and views on international humanitarian law. The survey was mainly standardized for all countries, though the wording was modified to reflect each context and to achieve consistent meaning. About 10 per cent of the questions were contextual and in many cases unique to the country. In an additional five countries, the questionnaire was designed to elicit people's perceptions on war and humanitarian law.

The questionnaires were developed by Greenberg Research, in consultation with the ICRC, on the basis of interviews with humanitarian law experts in the United States and Europe. The survey and questions were pre-tested in Mozambique and Colombia.

Sample design. In each country, interviews were held with 1,000 to 1,500 respondents, selected by a stratified, multistage cluster sampling method. The sample was stratified to ensure representation (500 interviews) from each of the principal conflict-affected geographic areas or ethnic/religious groups. In Bosnia-Herzegovina, for example, this meant some 1,500 interviews (500 from Republika Srpska and 500 each from the Bosniac and Croat areas of the Federation of Bosnia-Herzegovina); in Israel, the occupied territories and the autonomous territories, this meant 1,000 interviews (500 in Israel and 500 in the occupied territories and the autonomous territories). These areas were divided into urban and rural geographic units (strata), to ensure representation of urban and rural populations.

The local partner randomly selected small geographic units within these strata. These units – 100 to 200 in each country – constituted the sampling points for the survey. In each geographic unit, 10 households (though fewer in some countries) were selected using a random route method appropriate to

44 the country. In some cases, interviewers were provided with a map and a route; in others, interviewers were simply given a route and selection instructions.

Within households, respondents were selected using a Kish grid (a respondent selection key that employs a combination of random numbers, alphabet codes and the number of available members in a household to identify the appropriate respondent) or the birthday criterion (a respondent selection process that employs dates of birth to determine the appropriate respondent). Interviewers were to make three attempts to achieve a completed interview, including locating the respondent elsewhere. In nearly every country, non-response was below 10 per cent.

The demographic distribution of the surveyed respondents was compared with the best available census data on education, age, household type and occupation. Where the sample survey was sharply askew (e.g., too many college-educated or too many young respondents), statistical weights were applied to eliminate the bias.

Interviews carried out by phone reached 755 adults in France, 1,000 in Switzerland, 750 in the United Kingdom and 1,000 in the United States, and 1,000 face-to-face interviews were carried out in the Russian Federation.

Survey administration. In nearly all the countries, the survey was administered by the ICRC, with the assistance of Greenberg Research and a local research partner. Interviews were conducted by Red Cross or Red Crescent staff. Greenberg Research provided training, which typically took two days.

Parallel research. In three of the countries – Colombia, Bosnia-Herzegovina and the Philippines – Greenberg Research commissioned a parallel quantitative survey, administered by a local research company using professional interviewers, in order to identify patterns of bias. The results of the parallel studies were then compared with the results of the ICRC-administered surveys. The exercise found only a few areas of systematic bias. Those interviewed by the ICRC and Red Cross or Red Crescent staff, for example, were consistently more supportive of the ICRC's role and more aware of the Geneva Conventions and the rules of war. However, the parallel research found few systematic differences in opinions on international humanitarian law. The ICRC results closely resemble the parallel survey results on most other questions. (A technical report assessing the parallel research and Red Cross bias is available separately.)

In-depth research

Focus groups. The focus groups provided a relatively unstructured environment for people to discuss their war experiences freely, express their views on the appropriate limits to war and consider possible actions against those who exceed them. To be effective, the groups had to be as homogeneous as possible, that is, the participants all had to have similar characteristics. Thus, in general, the participants in a group came from the same area, were all male or all female and shared an important experience (e.g., families of missing persons, ex-soldiers, ex-fighters, prisoners, teachers or journalists). The discussions were frequently intense and emotional and provide a rich commentary on how the public approaches these issues.

In each country, 8 to 12 focus groups were organized – four in each of the principal conflict areas. The participants were recruited by Red Cross or Red Crescent staff, based on guidelines provided by Greenberg Research. The local research company provided a professional moderator, who facilitated the discussions using guidelines prepared by Greenberg Research.

The discussions were held in focus-group facilities, school classrooms, hotel rooms and even in the open air, if, for example, they involved guerrilla fighters. ICRC, Red Cross/Red Crescent and

Greenberg Research staff observed and listened to the discussions from an adjoining location, with simultaneous translation in English. The focus group discussions were recorded and later transcribed in English.

In-depth interviews. To help interpret the full meaning of the survey responses, about 20 in-depth interviews were conducted with individuals who had had specific war experiences. The in-depth interview guidelines repeated questions from the public opinion survey, although they allowed for open-ended, rather than categorized responses. Interviewers were encouraged to probe and follow up on responses.

The in-depth interviews involved a broad range of people – officers, medical personnel, students (secondary school and university), journalists, former combatants, refugees, displaced persons, family members of missing persons, war invalids and others.

The interviews were recorded on tape, transcribed and translated into English by the local partner.

Annex 2: Questionnaire*

Introduction

We are doing a series of interviews on **[NAME OF COUNTRY]** and would like your help with that. Would it be possible to ask a few questions to the person who is 18 years or older and whose birthday is **[FIRST AFTER TODAY]? [IF NECESSARY: The interview will take about 30 minutes.]** The questions are about your experiences and opinions on the [war/armed conflict] in **[NAME OF COUNTRY OR REGION]**. Your identity will remain absolutely confidential.

Let me begin by asking you some questions about yourself to make sure we are talking to all kinds of people. If you don't want to answer, feel free to tell me so and we will move on to the next question.

1. What is your age? _____

☐ [Don't know/refused]

2. How many years of school have you had? _____ years

☐ [Don't know/refused]

3. What is your current family situation?

☐ Married (have a husband or wife)

☐ Single

☐ Live together with someone (in a permanent relationship)

☐ Divorced (or separated)

☐ Spouse of missing person

☐ Widow(er)

☐ [Don't know/refused]

4. Do you have children? **[FOLLOW UP IF "YES"]** How many?

☐ No children

☐ Yes ____ children

5. What is your job now or are you not working?

☐ Farmer

☐ Manual worker

☐ Skilled worker

☐ Self-employed

☐ Housewife/home care

☐ Soldier (combatant)

☐ Government employee

☐ Private sector employee

☐ Teacher/professor/intellectual

☐ Pensioner/retired

☐ Unemployed (but looking for work)

☐ Unemployed (not looking for work)

☐ Student

☐ Other **[SPECIFY]**

☐ [Don't know/refused]

* This questionnaire is the standard one used in the 12 countries affected by conflict in the last decades. Some contextual questions were added for specific countries. These do not figure here, but are reflected in the findings presented in each Country Report.

6. Let me ask about the war in **[COUNTRY NAME]**. Did the war take place in the area where you were living or did the war take place mainly somewhere else?

- ☐ Area where you were living → **GO TO Q7**
☐ Somewhere else? → **GO TO Q8**
☐ Both [Volunteered response] → **GO TO Q8**
☐ [Don't know/refused]? → **GO TO Q8**

7. **[IF "AREA WHERE YOU WERE LIVING" IN PREVIOUS QUESTION]** Did you live in that area before the [war/armed conflict], move voluntarily, or were you forced to move? **[PROBE IF RESPONDENT SAYS "THERE HAS ALWAYS BEEN ARMED CONFLICT"]**

- ☐ Live in same area
☐ Moved voluntarily
☐ Forced to move
☐ [Don't know/refused]

8. **[ASK OF ALL RESPONDENTS]** During the [war/armed conflict], did you ever find yourself in a situation of being a combatant and carrying a weapon?

- ☐ Yes — combatant, carried weapon
☐ No — not a combatant
☐ [Don't know/refused]

9. **[ASK OF ALL RESPONDENTS]** Is there anything that combatants should not be allowed to do in fighting their enemy? **[PROBE AND WRITE ANSWERS AS FULLY AS POSSIBLE]**

[IF NO RESPONSE, GO TO Q11]

10. **[IF RESPONDENT GIVES ANY RESPONSE TO PREVIOUS QUESTION]** Could you tell me the main reason why they should not do that? Is that because...? **[READ AND ROTATE]**

- ☐ It's wrong → **GO TO Q10a**
☐ It just causes too many problems → **GO TO Q10b**
☐ [Don't know/refused] → **GO TO Q11**

[FOLLOW UP IF MORE THAN ONE REASON SELECTED] Which would be the main reason?

- 10a. **[IF "IT'S WRONG"]** When you say, it's wrong, is it primarily wrong because it is...? **[READ AND ROTATE] [TWO RESPONSES ALLOWED]**

- ☐ Against your religion
☐ Against your personal code
☐ Against the law
☐ Against what most people here believe
☐ Against your culture
☐ Against human rights
☐ Other **[SPECIFY]**
☐ [Don't know/refused]

48 10b. **[IF "IT JUST CAUSES TOO MANY PROBLEMS"]** When you say, it just causes too many problems, are you thinking it...? **[READ AND ROTATE] [TWO RESPONSES ALLOWED]**

- ☐ Produces too much hate and division
- ☐ Causes too much psychological damage
- ☐ Produces too much destruction
- ☐ Causes too much physical suffering
- ☐ Other **[SPECIFY]**
- ☐ [Don't know/refused]

11. Which two of these words best describe the war for you personally? **[READ AND ROTATE]**

- ☐ Horrible
- ☐ Disruptive
- ☐ Humiliating
- ☐ Exciting
- ☐ Hateful
- ☐ Challenging
- ☐ Hopeful
- ☐ Confusing
- ☐ Uncertainty
- ☐ Powerless
- ☐ Remote
- ☐ [Don't know/refused]

Note: Version used in countries where there are no clear sides for most of the population; for countries where there are sides, half the surveys will be asked Version A (without sided wording) and half Version B (with sided wording).

12. Now I would like to ask you some *general* questions about how, in your view, combatants should behave in times of war.

Version A: When combatants attack to weaken the enemy, should they...? **[READ AND ROTATE]**

Version B: When combatants from your side attack to weaken the enemy, should they... ? **[READ AND ROTATE]**

- ☐ Attack enemy combatants and civilians
 - ☐ Attack enemy combatants and avoid civilians as much as possible
- OR**
- ☐ Attack only enemy combatants and leave the civilians alone
 - ☐ [Don't know/refused]

[FOLLOW-UP IF CONFUSION ABOUT YOUR/OTHER SIDE] Just imagine that there is a side in the conflict that you support more than any other side.

Note: in the next set of questions we will be randomly splitting the sample in two. Version 1 will be asked of one half and version 2 will be asked of the other half. If there are clear sides to the war, Version 1 coincides with Version A and Version 2 coincides with Version B. (This means there will always be two and exactly two versions of the questionnaire.)

Let me ask you about some things that combatants may do to weaken the enemy they are fighting against. Please tell me for each of these things whether it is okay or not okay to do it, to weaken the enemy.

13. **Version 1:** Attacking civilians who voluntarily gave food and shelter to enemy combatants. Would it be okay or not okay to attack them in order to weaken the enemy?

Version 2: Attacking civilians who were forced to give food and shelter to enemy combatants. Would it be okay or not okay to attack them in order to weaken the enemy?

- ☐ Okay
☐ Not okay
☐ [Don't know/refused]

14. **Version 1:** Attacking civilians who voluntarily transported ammunition for enemy combatants defending their town. Would it be okay or not okay to attack them to weaken the enemy?

Version 2: Attacking civilians who were forced to transport ammunition for enemy combatants defending their town. Would it be okay or not okay to attack them to weaken the enemy?

- ☐ Okay
☐ Not okay
☐ [Don't know/refused]

15. I will now describe some situations that may happen during a [war/armed conflict]. For each situation, I would like you to imagine that you are part of that situation. Tell me how you think you would behave if the decisions were completely up to you. Here comes the first imaginary situation.

Version 1: Would you save the life of a surrendering enemy combatant who killed a person close to you?

- ☐ Would save
☐ Would not save
☐ [Don't know/refused]

Version 2: Would you help a wounded enemy combatant who killed a person close to you?

- ☐ Would help
☐ Would not help
☐ [Don't know/refused]

Now I'm going to ask your opinion on some of the things combatants might do in times of [war/armed conflict].

- 16a. **Version A:** What about depriving the civilian population of food, medicine or water in order to weaken the enemy?

Version B: What about depriving the civilian population on the other side of food, medicine or water in order to weaken the enemy?

Is that wrong or just part of war?

- ☐ Wrong
- ☐ Part of war
- ☐ Both [Volunteered response]
- ☐ [Don't know/refused]

16b. **Version A:** Are there any laws or rules that say you can't do that, even if it would help weaken the enemy, or are there no laws or rules to stop that?

Version B: Are there any laws or rules that say you can't do that, even if it would help your side weaken the enemy, or are there no laws or rules to stop that?

- ☐ Laws — can't do that
- ☐ No laws
- ☐ [Don't know/refused]

17a. **Version 1:** What about attacking enemy combatants in populated villages or towns in order to weaken the enemy, knowing that many civilians would be killed?

Version 2: What about attacking enemy combatants in populated villages or towns in order to weaken the enemy, knowing that many women and children would be killed?

Is that wrong or just part of war?

- ☐ Wrong
- ☐ Part of war
- ☐ Both [Volunteered response]
- ☐ [Don't know/refused]

17b. **Version A:** Are there any laws or rules that say you can't do that, even if it would help weaken the enemy, or are there no laws or rules to stop that?

Version B: Are there any laws or rules that say you can't do that, even if it would help your side weaken the enemy, or are there no laws or rules to stop that?

- ☐ Laws — can't do that
- ☐ No laws
- ☐ [Don't know/refused]

18. **[ASK ONLY IN WAR ZONES WHERE APPROPRIATE]** What about attacking religious and historical monuments, in order to weaken the enemy. Is that wrong or just part of war?

- ☐ Wrong
 - ☐ Part of war
 - ☐ Both [Volunteered response]
 - ☐ [Don't know/refused]
-

19. **[ASK ONLY IN WAR ZONES WHERE APPROPRIATE]** What about taking civilian hostages in order to get something in exchange? Is that wrong or just part of war?

- ☐ Wrong
☐ Part of war
☐ Both [Volunteered response]
☐ [Don't know/refused]

20. **[ASK ONLY IN WAR ZONES WHERE APPROPRIATE]** Now a question about the “protected areas”. Do you think that these “protected areas” are a good or a bad idea?

- ☐ Good idea
☐ Bad idea
☐ [Don't know/refused]

21. **[ASK ONLY IN WAR ZONES WHERE APPROPRIATE]** Did the “protected areas” make it better or worse for civilians during the war, or did they make no difference?

- ☐ Better
☐ Worse
☐ No difference
☐ [Don't know/refused]

22. **[ASK ONLY IN WAR ZONES WHERE APPROPRIATE] Version 1:** Did the “Peace support operation” make it better or worse for civilians during the war, or didn't it make any difference?

Version 2: Did the “Peace support operation” make it better or worse for you personally during the war, or didn't it make any difference?

- ☐ Better
☐ Worse
☐ No difference
☐ [Don't know/refused]

Version A: Let me ask you about some other things that might happen during war to weaken the enemy. Please tell me for each of these things whether it is okay or not okay to do it in order to weaken the enemy.

Version B: Let me ask you about some other things that your side might do to weaken the enemy during war. Please tell me for each of these things whether it is okay or not okay to do it in order to weaken the enemy.

23. First, are there types of weapons that should just never be used during war? **[FOLLOW UP IF YES]** What types of weapons would you think of? **[CHECK RESPONSE BELOW] [DO NOT READ CHOICES] [MULTIPLE ANSWERS ALLOWED]**

- ☐ Landmines
☐ Laser weapons
☐ Napalm
☐ Nuclear weapons
☐ Chemical weapons
☐ Cluster bombs

- ☐ Other **[SPECIFY]**
☐ No types of weapons allowed
☐ [Don't know/refused]

24. **Version A:** Combatants planting landmines to stop the movement of enemy combatants, even though civilians may step on them accidentally. Is it okay or not okay to do that if it would weaken the enemy?

Version B: Combatants on your side planting landmines to stop the movement of enemy combatants, even though civilians may step on them accidentally. Is it okay or not okay to do that if it would weaken the enemy?

- ☐ Okay, if necessary
☐ Not okay
☐ [Don't know/refused]

25. In war, combatants sometimes attack or hurt civilians, even though many people say it is not okay and maybe against the law. So please tell me why you think combatants attack civilians anyway.

[PROBE AND WRITE ANSWERS AS FULLY AS POSSIBLE]

26. Which *two* of the following reasons best explain why combatants attack or hurt civilians, even though many people say it is not okay or maybe against the law. Is it because they...? **[READ AND ROTATE RESPONSES]** **[FOLLOW-UP IF MORE THAN TWO REASONS SELECTED]** Which would be the two main reasons?

- ☐ Don't care about the laws
☐ Hate the other side so much
☐ Are determined to win at any cost
☐ Lose all sense during war
☐ Are too young to make judgements
☐ Don't know the laws
☐ Are often under the influence of alcohol or drugs
☐ Are scared
☐ Are told to do so
☐ Know the other side is doing the same thing
☐ [Don't know/refused]

27a. Now let me ask you how *captured combatants* should be treated.

Version A: Must a captured enemy combatant be allowed to contact relatives, or doesn't that have to be allowed?

Version B: Must your side allow a captured enemy combatant to contact relatives, or don't you have to allow that?

- ☐ Must allow
☐ Don't have to allow
☐ [Don't know/refused]

27b. **Version A:** Is it true that a captured enemy combatant cannot be subjected to torture to obtain important military information, or can captured combatants be subjected to torture?

Version B: Is it true that your side cannot subject a captured enemy combatant to torture to obtain important military information, or can you subject captured combatants to torture?

- ☐ Cannot subject
- ☐ Can subject
- ☐ [Don't know/refused]

27c. **Version A:** Must a captured enemy combatant be allowed a visit by a representative from an independent organization outside the prison or camp, or doesn't that have to be allowed?

Version B: Must your side allow a captured enemy combatant to be visited by a representative from an independent organization from outside the prison or camp, or don't you have to allow that?

- ☐ Must allow → GO TO Q27d
- ☐ Don't have to allow → GO TO Q28
- ☐ [Don't know/refused] → GO TO Q28

27d. **[IF "MUST ALLOW"]** Which of the following people should be allowed to visit captured enemy combatants...? **[READ AND ROTATE RESPONSES] [ALLOW MULTIPLE RESPONSES]**

- ☐ International Committee of the Red Cross representatives
- ☐ UN representatives
- ☐ Human rights group representatives
- ☐ Journalists
- ☐ Religious clerics/ministers
- ☐ Other **[SPECIFY]**
- ☐ [Don't know/refused]

Once again, I want you to *imagine* yourself in the following situations and tell me what you think you would do if the decisions were completely up to you.

28. **Version A:** If one side in the war is killing prisoners, would you approve the killing of prisoners by the other side or would you not approve it?

Version B: If the other side in the war is killing prisoners, would you approve the killing of prisoners by your side or would you not approve it?

- ☐ Would approve
- ☐ Would not approve
- ☐ [Don't know/refused]

[FOLLOW UP IF RESPONDENT PROTESTS] Just imagine you happen to find yourself in this situation.

29. In general, do you ever think that captured enemy combatants deserve to die?

- ☐ Think deserve to die
- ☐ No
- ☐ [Don't know/refused]

30. Now I'm going to ask you about your actual experiences during the war. Please tell me whether any of the following things happened to you personally or did not happen as a consequence of the [war/armed conflict] in **[COUNTRY NAME]**. **[READ AND ROTATE ORDER]**

	Happened	Did not happen	Don't know/refused
Forced to leave your home and live elsewhere	☐	☐	☐
Imprisoned	☐	☐	☐
Kidnapped or taken hostage	☐	☐	☐
Tortured	☐	☐	☐
Felt humiliated	☐	☐	☐
Lost contact with a close relative	☐	☐	☐
A member of your immediate family killed during the armed conflict (son, daughter, father, mother, brother, sister, grandmother, grandfather, grandchild)	☐	☐	☐
Serious damage to your property	☐	☐	☐
Wounded by the fighting	☐	☐	☐
Combatants took food away	☐	☐	☐
Had your house looted	☐	☐	☐
Somebody you knew well was sexually assaulted by combatants	☐	☐	☐
[READ LAST] Somebody you knew well was raped by combatants	☐	☐	☐

31. **[ASK ALL RESPONDENTS]** Were you imprisoned by enemy combatants or were you living in an area that came under enemy control?

Imprisoned by enemy combatants	→ GO TO Q32
Living in area under enemy control	→ GO TO Q32
Both [Volunteered response]	→ GO TO Q32
[Don't know/refused]	→ GO TO Q34
No response	→ GO TO Q34

32. **[ASK IF "IMPRISONED", "LIVED UNDER ENEMY CONTROL", OR BOTH]** Please tell me whether any of the following happened while you were under enemy control. **[READ AND ROTATE]** Did that happen or not?

	Happened	Did not happen	Don't know/refused
You were personally mistreated	☐	☐	☐
You were physically injured	☐	☐	☐
You were treated correctly	☐	☐	☐
[READ LAST] You had a contact with a representative from an independent organization to check on your well-being	☐	☐	☐

33. **[ASK ONLY IF CONTACT HAPPENED, OTHERWISE GO TO Q33]** Which of the following people did you have contact with to check on your well-being? **[READ AND ROTATE RESPONSES] [ALLOW MULTIPLE RESPONSES]**

- ☐ ICRC representatives
- ☐ UN representatives
- ☐ Human rights group representatives
- ☐ Journalists
- ☐ Religious clerics/ministers
- ☐ Other **[SPECIFY]**
- ☐ [Don't know/refused]

34. Now let me ask you for your opinion about something else, about young people being combatants. At what age is a young person mature enough to be a combatant? **[READ LIST UNTIL RESPONDENT CHOOSES AN ANSWER]**

- ☐ 14 or under
- ☐ 15
- ☐ 16
- ☐ 17
- ☐ 18
- ☐ 19
- ☐ 20
- ☐ 21
- ☐ Above 21
- ☐ [Don't know/refused]

35. During the war, did you support [have you supported] one of the sides or did you not support any side?

- ☐ Supported a side
- ☐ Did not support a side
- ☐ [Don't know/refused]

36. Let me ask you something very different. Have you ever heard of the Geneva Conventions?

- ☐ Yes — heard
- ☐ No — not heard **→ GO TO Q38**
- ☐ [Don't know/refused] **→ GO TO Q38**

37. **[IF HEARD OF GENEVA CONVENTIONS]** Could you tell me what the Geneva Conventions are about? **[WRITE DOWN ANSWER AS FULLY AS POSSIBLE] [MARK APPROPRIATE RESPONSE]**

- ☐ Accurate **[ANY REFERENCE TO LIMITS IN WAR]**
- ☐ Not accurate **[NO REFERENCE TO LIMITS IN WAR]**

38. Let me read you a statement about the Geneva Conventions:

The Geneva Conventions is a series of international treaties that impose limits in war by describing some rules of war. Most countries in the world have signed these treaties.

Do you think the existence of the Geneva Conventions prevents wars from getting worse or does it make no real difference?

- ☐ Prevents wars from getting worse
- ☐ No real difference
- ☐ [Don't know/refused]

39. Are you familiar with this? **[SHOW RED CROSS OR RED CRESCENT]** What does it stand for? **[DO NOT READ RESPONSES]**

- ☐ Red Cross
- ☐ Red Crescent
- ☐ Red Cross and Red Crescent
- ☐ Medical/Hospital
- ☐ United Nations
- ☐ Army
- ☐ Other **[SPECIFY]**
- ☐ [Don't know/refused]

40. What kind of people or things does this symbol protect? **[WRITE ANSWERS AS FULLY AS POSSIBLE]**

41. Are there rules or laws that are so important that, if broken during war, the person who broke them should be punished?

- ☐ Yes
- ☐ No **→ GO TO Q46**
- ☐ [Don't know/Refused] **→ GO TO Q46**

42. **[IF YES]** So what kind of rules or laws are you thinking about? **[PROBE AND WRITE ANSWERS AS FULLY AS POSSIBLE]**

43. **[IF RESPONDS TO PRIOR QUESTION, OTHERWISE GO TO Q46]** What are these rules based on? **[READ AND ROTATE] [ONE RESPONSE ONLY]**

- ☐ [Country name]'s laws
 - ☐ International law
 - ☐ Religious principles
 - ☐ The values people hold
 - ☐ Other **[SPECIFY]**
 - ☐ [Don't know/refused]
-

44. If these rules are broken in war, who should be responsible for punishing the wrongdoers? **[READ AND ROTATE] [ONE RESPONSE ONLY]**

- ☐ The government of [country name]
- ☐ The [country name]'s courts
- ☐ International criminal court
- ☐ The military itself
- ☐ The civilian population
- ☐ Your own political leaders
- ☐ Other **[SPECIFY]**
- ☐ [Does not apply, rules are not broken]
- ☐ [Don't know/refused]

45. When the war is over, should people who have broken these rules...? **[READ AND ROTATE] [ONE RESPONSE ONLY]**

- ☐ Be put on trial
- ☐ Be exposed to the public but not be put on trial
- ☐ Be forgotten when the war is over
- ☐ Be forgiven after the war
- ☐ Granted amnesty
- ☐ [Don't know/refused]

46. **[ASK ALL RESPONDENTS]** Let me ask what can be done *if* during the war civilian areas are attacked, towns or villages are cut off from food, water, medical supplies and electricity. To whom would you turn to get help or to be protected? **[PROBE AND WRITE ANSWERS AS FULLY AS POSSIBLE]**

- ☐ [Can't turn to anybody]
- ☐ [Don't know/refused]

47. I'm now going to describe different kinds of people and organizations. Please tell me which *two* of these have played the biggest role *during* the war to stop this. Here are the people and organizations: **[READ AND ROTATE] [RECORD THE TWO MOST IMPORTANT RESPONSES] [FOLLOW UP WITH: Which two have played the biggest role?]**

- ☐ The military and combatants on your side **[Version B]**
- ☐ The military and combatants of the other side **[Version B]**
- ☐ The military and combatants **[Version A]**
- ☐ Religious leaders
- ☐ International humanitarian organizations
- ☐ Journalists and the news media
- ☐ The United Nations
- ☐ The ICRC or Red Cross (or Red Crescent)
- ☐ Government leaders
- ☐ International criminal court
- ☐ Other countries
- ☐ [Nobody did anything]
- ☐ [Don't know/refused]

48. In the future, would you like to see more or less intervention from the international community to deal with these kinds of issues?

- ☐ More intervention
- ☐ Less intervention
- ☐ [No intervention]
- ☐ [Don't know/refused]

49. Do you think the peace will last or do you think there will be more war in the future?

- ☐ Peace will last
- ☐ More war in future
- ☐ [Both]
- ☐ [Don't know/refused]

50. One last question, what did you learn from the war that you think others should know? **[PROBE AND WRITE ANSWERS AS FULLY AS POSSIBLE]**

The ICRC's mission

The International Committee of the Red Cross (ICRC) is an impartial, neutral and independent organization whose exclusively humanitarian mission is to protect the lives and dignity of victims of war and internal violence and to provide them with assistance. It directs and coordinates the international relief activities conducted by the Movement in situations of conflict. It also endeavours to prevent suffering by promoting and strengthening humanitarian law and universal humanitarian principles. Established in 1863, the ICRC is at the origin of the International Red Cross and Red Crescent Movement.
